Matter 44 — Westlaw Research Findings

California hotel employee — FCRA, ICRAA, Penal Code § 290.46, cat's paw, reduced hours, and damages

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Prepared: November 11, 2026 (Pacific Time)

Source: Westlaw Patron Access (Oregon State Law Library), pro se attestation. Documents were **read on screen only**. Nothing was downloaded, printed, or emailed from Westlaw.

Jurisdiction settings used: California state and federal and the Ninth Circuit, then All Federal for the FCRA guide sessions, as recorded in the session catalogs.

Underlying catalogs: fact-brief.md; catalog-01 through catalog-08; research-guide-fcra.md (Questions 1–10 and the KeyCite checklist). This memorandum compiles those catalogs. It does not add authorities, quotations, pin cites, KeyCite flags, or holdings that were not recorded there.

Attorney work product / research notes — not legal advice; verify before citing.
Several sessions ended at Westlaw's "Document Limit Reached." Where a flag color, pin, quotation, or holding was not captured, this memorandum says so. Ninth Circuit memorandum dispositions are citable if issued in or after 2007 but are not precedent (9th Cir. R. 36-3). California unpublished opinions are not citable in California courts (CRC 8.1115). District-court opinions are persuasive only. Pre-2021 standing decisions must be read in light of *TransUnion LLC v. Ramirez*, 594 U.S. 413 (2021).

Contents

1. Method, limitations, and how to read this memorandum
2. Executive summary
3. Record 1 — Pleading gaps
    - 3.1 Penal Code § 290.46 — source and employment use
    - 3.2 Cat's paw — *Mendoza*, *Staub*, *Poland*, *France*, and California applications
    - 3.3 Reduced hours as an adverse action, and proof of hours
    - 3.4 Section 290.46 remedies and Jury Verdicts & Settlements
4. Record 2 — Defensible damages
    - 4.1 $752 versus $768 per week
    - 4.2 Emotional distress while still employed
    - 4.3 Section 290.46(j)(4)(A) and the $25,000 figure
    - 4.4 Federal amount in controversy, kept separate from expected recovery
5. FCRA research guide, Questions 1–10
    - Q1 Article III standing after *TransUnion*
    - Q2 Disclosure never given
    - Q3 and Q5 Authorization defects and willfulness
    - Q4 Shift cut of a current employee as an FCRA "adverse action"
    - Q6 ICRAA in federal court
    - Q7 Signed acknowledgment of receipt
    - Q8 Supplemental jurisdiction and tolling
    - Q9 Section 290.46 updates, "person at risk," and limitations
    - Q10 Current statute text — **not reached**
6. Damages comparator table
7. KeyCite status table (checklist cases)
8. "Do not cite" list
9. STILL OPEN — items not reached, and search strings to run next
10. Appendix — complete search log, with result counts

1. Method, limitations, and how to read this memorandum

Research was conducted on November 11, 2026, through Westlaw Patron Access at the Oregon State Law Library, after pro se attestation. Every session catalog states that documents were read on screen only and that nothing was downloaded. The user's instruction — "Don't be in a rush, take your time, read thoroughly, don't download anything but definitely catalog your findings in great detail then output a PDF with your findings" — is the reason this memorandum exists.

Westlaw imposed a document limit more than once. Session 1 of the cat's-paw work stopped at *Swirski* and *Kincheloe* (both were opened in session 2). The first reduced-hours session stopped at *Kahle* (opened in session 4). FCRA Guide Session A stopped when *Artis v. District of Columbia*, 583 U.S. 71 (2018), was opened, at about 6:40 p.m. Pacific Time. Session C stopped on the eighth document, at the opening of *McCallum v. Batista*. When the limit was reached, research stopped; the limit was not worked around. Open items are collected in Section 9, under a red heading.

This memorandum uses only the fact brief, catalogs 01 through 08, and the FCRA research guide. It does not invent citations, quotations, pins, flags, or holdings. Conventions:

- Where a KeyCite **flag color was not captured**, the entry says so. A negative-treatment count without a color is not treated as a color.
- Where a case was seen only in a snippet, a search-result caption, or a synopsis, that limit is stated. Those items are leads, not verified holdings.
- Quotations are the quotations recorded in the catalogs, with the pins the catalogs recorded. If a pin was not captured, this memorandum does not supply one.
- Helps / hurts / distinguishable labels are the catalogs' assessments, not new legal conclusions.
- The fact brief is used only for the Matter 44 factual frame (weekly baselines, roster hours, pleading gaps, and the instruction to keep amount in controversy separate from expected recovery). This memorandum does not treat the fact brief as a payroll record, a contemporaneous transcript, a registry printout, or a filed complaint.

Session log (all times Pacific, November 11, 2026), as the catalogs recorded them:

WESTLAW SESSIONS COMPILED HERE

CATALOG	SUBJECT	APPROXIMATE TIME	STOP CONDITION
01	§ 290.46 use and remedies	Earlier afternoon	Completed the searches that were run; no remedy award found
02, sess. 1–3	Cat's paw	Through ~5:20 p.m.	Session 1 hit the document limit; sessions 2–3 continued (8 docs + KeyCite pages in session 3)
03, first pass	Reduced hours as adverse action	~5:20–5:27 p.m.	Document limit at *Kahle*
03, sess. 4	Back-pay proof (Task B)	~5:57–6:02 p.m.	8 documents; signed off
04	Damages, ED comparators, JVS, (j)(4)(A)	~6:05–6:25 p.m.	18 full-text documents; signed off
05 (Guide A)	Q1, Q3, Q5; start of KeyCite	~6:30–6:40 p.m.	Document limit on opening *Artis*; ~27 documents, including one wasted on the 2016 E.D. Cal. *Syed* order
06 (Guide A-2)	Q2, *Bultemeyer*, *Gray*, *Parsonage* history, remaining flags	~6:55–7:05 p.m.	No limit; signed off on time budget

CATALOG	SUBJECT	APPROXIMATE TIME	STOP CONDITION
07 (Guide B)	Q4, Q6, Q7; *Artis*/*Kanter*/*Gibson* flags; *Admore* district opinion	~7:09–7:19 p.m.	No limit; session left signed in
08 (Guide C)	Q8, Q9; start of Q9-4	~7:20–7:24 p.m.	Document limit on the 8th document (opening *McCallum*); signed off. Q10 and defense-brief searches not reached.

2. Executive summary

The strongest supporting authorities

On reduced hours, the strongest published California authority is *Light v. Department of Parks & Recreation*, 14 Cal.App.5th 75, 221 Cal.Rptr.3d 668 (4th Dist., Div. 1, Aug. 8, 2017) (yellow flag; 6 negative treatments; 1,080 citing references; no negative direct history). Light was a permanent intermittent office assistant with no guaranteed hours. The court held, at pages 92–93, that "the reduction of Light's hours alone could constitute a material and adverse employment action," and that the employer's assertion of seasonal or budget reasons was "irrelevant to the issue of whether it was an adverse employment action." Hours cut to zero "may reasonably be interpreted as a material and adverse change." *Menchu v. Multnomah County Health Department*, 2024 WL 4242514 (D. Or. Aug. 16, 2024), is consistent on the definition: "Even a small reduction in hours (and a corresponding reduction in pay) is an adverse employment action in the retaliation context," though causation there failed.

On the FCRA adverse-action question for a current hourly employee, the best factual fit is *Nguyen-Wilhite v. Tapestry*, 2026 WL 836247 (S.D.N.Y. Mar. 26, 2026) (0 negative treatments). The court "cannot hold as a matter of law that Tapestry did not take an adverse action" where a working hourly employee was taken off the schedule without pay before the report or notice, because the removal "deprived her of her wages for a period of time" (*5). The employer still won summary judgment on willfulness and negligence under *Safeco*.

On Article III standing after *TransUnion*, two district opinions help if lost opportunity and downstream harm are pleaded: *Magallon v. Robert Half International*, 2024 WL 4182846 (D. Or. Sept. 13, 2024) (0 negative), which holds that loss of the chance to make timely, informed employment decisions is concrete and which distinguishes *Gray v. Nachurs Alpine* directly; and *Seyed-Ali v. HireRight*, 2025 WL 2659234 (C.D. Cal. Aug. 15, 2025) (0 negative), which denied a motion to dismiss on standing, § 1681b(b)(3), ICRAA, and UCL, holding that a lost chance to dispute and keep the job is enough at the pleading stage. The Ninth Circuit has not narrowed *Syed v. M-I, LLC*, 853 F.3d 492 (9th Cir. 2017), after *TransUnion*. *Tailford v. Experian Information Solutions, Inc.*, 26 F.4th 1092 (9th Cir. Mar. 1, 2022), reaffirmed it: "Just as the alleged violation in *Syed* was sufficient to confer standing, the alleged violations of § 1681g here are similarly sufficient." *TransUnion* itself, at 440–42, distinguished plaintiffs who "did not allege that they failed to receive any required information" and "argued only that they received it in the wrong format" — a distinction that favors a plaintiff who never received the disclosure at all, if personal facts and a concrete downstream harm are also pleaded.

On ICRAA, *Parsonage v. Wal-Mart Associates*, 118 Cal.App.5th 399, 341 Cal.Rptr.3d 447 (4th Dist., Div. 1, Feb. 4, 2026), is still good law: the California Supreme Court denied review on April 29, 2026, with no depublication (no flag; 0 negative; 47 citing references). It allows ICRAA standing on a statutory violation alone, without alleged concrete injury — but only in state court. *Yeh v. Barrington Pacific*, 117 Cal.App.5th 1303, 341 Cal.Rptr.3d 311 (2d Dist., Div. 3, Jan. 21, 2026) (0 negative), states: "ICRAA permits those who experience a violation of their rights to recover $10,000 without proving concrete injuries" (*1309). *Kemp v. Superior Court*, 86

Cal.App.5th 981, 302 Cal.Rptr.3d 788 (2022) (1 negative treatment), holds that the federal FCRA does not preempt ICRAA's seven-year conviction limit. *Parsonage* does not satisfy Article III or create a federal question.

On § 290.46, the employment ban is now in subdivision (j)(2)(E) (formerly (l)); *Walker v. Ronin Staffing LLC*, 2025 WL 2994548 (C.D. Cal. Oct. 10, 2025) (no flag; 0 negative), confirms that citation and that the employer who uses the registry information is the proper defendant, not a vendor or agent. *Mendoza v. ADP Screening & Selection Services, Inc.*, 182 Cal.App.4th 1644, 107 Cal.Rptr.3d 294 (2d Dist., Div. 8, Mar. 23, 2010), has no negative treatment (692 citing references). It limits liability "to employers who 'use' information disclosed on the MLW as a basis for an employment decision" (1657). No reported case awarding § 290.46 damages was found.

On cat's paw, California's working standard is "significant participant" with animus (*DeJung* at 551, as quoted in *Lin*, *Hoglund*, and *Martin*; *Reeves v. Safeway Stores*, 121 Cal.App.4th 95, at 110, 113–16), under the substantial-motivating-factor standard (*Harris*). Supervisor input is clearly covered. *Lin v. Kaiser Foundation Hospitals*, 88 Cal.App.5th 712 (2023), and *Hoglund v. Sierra Nevada Memorial-Miners Hospital*, 102 Cal.App.5th 56 (2024), are the strongest published plaintiff-side applications: the decisionmaker lacked firsthand knowledge and relied on a biased supervisor's evaluation or account.

On emotional-distress proof, *Newton v. Equilon Enterprises, LLC*, 411 F.Supp.3d 856, 877 (N.D. Cal. 2019) (0 negative), holds that objective medical evidence is not required; the plaintiff's lay testimony, with coworker testimony, supported $475,000. Large awards that survived review ordinarily had corroboration (*Colucci*, *McCray*). *Pierce v. East Bay MUD*, 2026 WL 2445810 (9th Cir. Aug. 20, 2026) (mem.; 0 negative), is the closest non-termination comparator ($2 million non-economic affirmed) but is nonprecedential and does not say the plaintiff was still employed at verdict.

The biggest adverse risks

***Gray v. Nachurs Alpine Solutions, LLC*, 2023 WL 3004433 (N.D. Ohio Apr. 19, 2023)** (yellow flag; 1 negative — distinguished by *Magallon*) is the most important adverse standing case on a "never given" disclosure. The plaintiff said he never received the separate disclosure his authorization acknowledged; the offer was withdrawn over an accurate DUI. The court dismissed for lack of standing: "Even if Gray had received the disclosure prior to NAS withdrawing its offer, it would not negate the fact that the background check showed accurate information" (*5); a signer "cannot maintain that he suffered a concrete privacy injury" (*7). To distinguish *Gray*, the catalogs record these pleading points: any inaccuracy, or that the registry information was unlawful to use even if accurate; what the plaintiff would have disputed or explained; that he never consented or was confused; and lost hours as monetary harm.

***Williams v. DISA Global Solutions*, 2026 WL 1847740 (N.D. Cal. June 26, 2026)** (0 negative) dismissed with leave: under *Dutta*, accurate disqualifying information is not a concrete harm, and "I would have disputed" was not pleaded. "Article III standing requires a concrete injury even in the context of a statutory violation" (*2). ***Nunley v. Cardinal Logistics*, 2022 WL 5176867 (C.D. Cal. Oct. 5, 2022)** (0 negative; 12 citing) rejects the argument that a "total lack of certain disclosures" is enough by itself. ***Beltran v. Waste Management*, 2025 WL 1455680 (E.D. Cal. May 21, 2025)** (0 negative) granted judgment on the pleadings where the form had a receipt acknowledgment: a "bare procedural violation" of the standalone, clear-and-conspicuous requirements "is not enough to establish standing." *Olea*, *Michaeli*, *Winters*, and *Masuda* all remanded or dismissed where personal confusion was not shown, or the plaintiff would have signed anyway.

On willfulness, *Bultemeyer v. CenturyLink, Inc.*, 2026 WL 2834418 (9th Cir. Sept. 22, 2026) (no flag; 0 negative), reversed a $28 million statutory and $112 million punitive verdict under the *Safeco* defense. It does not limit *Syed*'s stand-alone holding, but it makes willfulness damages harder. *Nguyen-Wilhite* itself granted the employer summary judgment on willfulness and negligence under *Safeco*.

On ICRAA damages, *Garcia v. Quest Group*, 2022 WL 228971 (S.D. Cal. Jan. 26, 2022) (0 negative), holds that "the ICRAA penalty applies per 'investigative consumer report'" — one $10,000 per report per defendant, not per violation.

On § 290.46, *Mendoza* at 1656 contains a defense-side risk: "while a strong argument might be made that employees are persons at risk whom an employer has a duty to protect from a sexually violent predator, SASS was not employing persons to work with Mendoza." *Lerma v. Amazon.com Services, LLC*, 2023 WL 4681571 (C.D. Cal. May 26, 2023), requires a plausible allegation that the information came from the Megan's Law website rather than public court records. *Donaleski* and *Pastrana* treat an independent investigation, self-disclosure, or a coworker's lookup as "notice" rather than "use," or as breaking causation. No case awards § 290.46 damages, so the statutory floor, trebling, fees, and $25,000 figure support an amount-in-controversy argument only with no case precedent.

On cat's paw, peer or trainer input is unsettled. *Reeves* footnote 9 says the outcome is "less clear where the only actor possessing the requisite animus is a nonsupervisory coworker." *Miller v. T-Mobile USA*, 2025 WL 3085722 (N.D. Cal. Nov. 5, 2025), granted the employer summary judgment on a cat's-paw theory involving a non-supervisory coworker: "The Ninth Circuit has yet to address whether a coworker's biased conduct supports cat's paw liability," and the court "cannot conclude that the California Supreme Court would extend the doctrine to cover the circumstances in this case." *Hamilton v. Orange County Sheriff's Department*, 2020 WL 4345169 (4th Dist., Div. 3, July 29, 2020) (unpublished; not citable in California courts), is the closest trainer fact pattern and affirmed summary judgment for the employer for lack of evidence that the trainer "orchestrated" the decision. No best-match trainer-evaluation-to-shift-cut case was found.

Concrete pleading recommendations that follow from the research

1. **Plead lost hours and wages as monetary harm.** *Nguyen-Wilhite* and *Light* both treat a cut in paid hours as adverse because it costs wages. That monetary injury is also the cleanest Article III fact for distinguishing *Gray* and *Nunley*.
2. **Plead what the plaintiff would have said, disputed, or explained, and any inaccuracy.** *Williams v. DISA* and *Gray* required that. If the registry entry was accurate, plead that using it for employment is independently unlawful under § 290.46(j)(2)(E), and plead the specific explanation or dispute that was never given a chance.
3. **Plead personal non-consent and confusion, not a generic "consumers would be confused" allegation.** *Syed* at 499–500 turned on the plaintiff being "confused by the inclusion of the liability waiver" and that he "would not have signed it had it contained a sufficiently clear disclosure." *Winters*, *Olea*, *Michaeli*, and *Masuda* remanded or dismissed without those personal facts. *Nunley* and *Beltran* reject a bare "no disclosure" or "bad form" theory.

4. **Plead the hours cut expressly, as a distinct adverse action, in each count, with exact before-and-after figures, duration, and comparators.** That is the lesson of *Kahle* (the plaintiff could not expand a count at summary judgment) and *Ballinger* (conclusory hour-cut allegations were not enough). The catalogs record roster-scheduled hours of 39.5, 40, 33, 32, 24, and 16. The baseline should be pegged to the documented pre-cut weeks, not to an assumed full-time or assumed 32-hour week (*Smith v. City of Oakland*, 538 F.Supp.2d at 1243–44: a full-time assumption without evidence is "speculative").
5. **Plead a Megan's Law website source, not merely a sex-offense remark, and connect "use" to the employer's employment decision.** *Lerma* dismissed where the report, judicially noticed, showed court-records databases rather than the Megan's Law website. *Mendoza* and *Walker* place liability on the employer who uses the information "as a basis for an employment decision," not on a vendor who accesses and republishes it. *Donaleski* requires evidence the decisionmaker used or considered the listing.
6. **For cat's paw, plead evaluative authority, actual transmission, and actual reliance — not a threatened report alone.** Evidence that wins, in the cases that were read, is a decisionmaker without firsthand knowledge who relied on the biased person's input, contemporaneous documents inconsistent with the stated reason, and personal delivery of the input. Evidence that loses is no proof of influence (*Martin*, *Hamilton*) and stray remarks unconnected to the decision. Whether a trainer is a "supervisor" or a "coworker" is an open legal characterization; *Miller v. T-Mobile* and *Reeves* footnote 9 are the defense authorities.
7. **Do not treat ICRAA's $10,000 statutory damages as a cure for Article III in federal court** (*Parsonage*, *Yeh* are state-court holdings). Do not stack per-violation ICRAA penalties; *Garcia v. Quest* caps them at one $10,000 per report per defendant. Paragraph 29 of the draft (authorization defects) remains unsupported: no case was read on an authorization that rests on a disclosure never given; *Luna v. Hansen & Adkins*, 956 F.3d 1151, 1153–54 (9th Cir. 2020), cuts against a stand-alone theory for the authorization itself. Consider dropping ¶ 29.
8. **Keep the federal amount in controversy on a separate track from expected recovery.** Do not treat the $25,000 figure, a settlement demand, or brand size as the amount in controversy. Section 290.46(j)(4)(A) supplies a $250 statutory minimum, up to three times actual damages, attorney's fees, and "exemplary damages, or a civil penalty not exceeding twenty-five thousand dollars ($25,000)." Whether "not exceeding $25,000" limits exemplary damages or only the civil penalty was not verified against current Notes of Decisions (Question 10, still open). No reported award exists. Courts may refuse to project part-time wages out to a hypothetical trial date (*Daley*, *Ornelas*). Corroborate emotional-distress testimony; keep expected recovery modest.

3. Record 1 — Pleading gaps

3.1 Penal Code § 290.46 — source and employment use

Plain-English answer. The civil-misuse provisions that used to sit in § 290.46(l) are now in § 290.46(j) (annotated statute effective January 1, 2023). Cases from 2007–2011 cite subdivision (l); *Walker* (2025) and *Lerma* (2023) cite (j). A person may use information disclosed under the section "only to protect a person at risk." Use "for purposes relating to" employment is prohibited, at (j)(2)(E). Authorized access under Penal Code §§ 11105 and 11105.3 and Labor Code § 432.7 is preserved by (j)(3).

Every case that was read decided only whether there was a "use" of Megan's Law website information for employment, or whether the complaint adequately pleaded that use and its source. No case reached remedies. Liability, as *Mendoza* and *Walker* frame it, is limited to the employer who uses the website information as a basis for an employment decision — not a screening vendor that accesses, compiles, and republishes it, and not an agent who is not the employer. The plaintiff must plead a plausible Megan's Law website source, as opposed to ordinary public court records (*Lerma*). A coworker's lookup that merely gives "notice," followed by an independent investigation or by the employee's own disclosure, has been held not to be a "use" (*Donaleski*, *Pastrana*). The catalogs found no post-September 2026 employment decision under the statute; the newest is *Walker*, October 10, 2025.

Current statute text, as read from the annotated statute (effective January 1, 2023)

Credits recorded: Stats. 2017, c. 541 (SB 384) § 10, operative January 1, 2022; amended 2018, c. 423; 2021, c. 615 (AB 474), operative January 1, 2023. Notes of Decisions: 27 entries; the only relevant ones recorded were *Mendoza* (headings 2 and 10) and *Cross v. Cooper* (heading 8); none on remedies.

> (j)(1) "A person is authorized to use information disclosed pursuant to this section only to protect a person at risk."
>
> (j)(2) Use "for purposes relating to" … (E) Employment … is prohibited. The catalogs also record the other listed purposes: health insurance, insurance, loans, credit, education, housing, and business-establishment benefits.
>
> (j)(3) Does not affect authorized access or use under Penal Code §§ 11105 and 11105.3 and Labor Code § 432.7.
>
> (j)(4)(A) "Any use of information disclosed pursuant to this section for purposes other than those provided by paragraph (1) or in violation of paragraph (2) shall make the user liable for the actual damages, and any amount that may be determined by a jury or a court sitting without a jury, not exceeding three times the amount of actual damage, and not less than two hundred fifty dollars ($250), and attorney's fees, exemplary damages, or a civil penalty not exceeding twenty-five thousand dollars ($25,000)."
>
> (j)(4)(B) The Attorney General, a district attorney, a city attorney, or a person aggrieved may sue for preventive relief against a pattern or practice. The remedies are "independent of any other remedies or procedures that may be available to an aggrieved party," including Civil Code § 43 et seq. Catalog 04 adds that preventive relief includes an injunction, and that this is in addition to other remedies.
>
> *Source: annotated statute, as quoted in catalogs 01, 04, and 08. Whether "not exceeding $25,000" limits exemplary damages or only the civil penalty was not verified in Notes of Decisions (Question 10, still open).*

Mendoza v. ADP Screening & Selection Services, Inc., 182 Cal.App.4th 1644, 107 Cal.Rptr.3d 294 (2d Dist., Div. 8, Mar. 23, 2010) (Bigelow, P.J.)

NO NEGATIVE 692 citing references (161 cases) · Binding in California Court of Appeal, Second District, Div. 8; published · Guide checklist; pins 1648–49, 1649–51, 1654–55, 1655–57, 1657–58, 1659 (catalog 01); catalog 08 also records 1655–56 and 1656–57

POSTURE AND FACTS

Appeal from an anti-SLAPP grant (Los Angeles Superior Court BC395846); $42,593.75 in fees to the screener; affirmed, plus appellate fees. In August 2007 the plaintiff applied; in September 2007 the screener accessed the Megan's Law website "for the sole purpose of denying employment to individuals who were registered sex offenders." The first amended complaint did not expressly allege that he was on the website, that he was not hired because of it, or damages (implicit) (1649). A declaration statement that he was denied employment was excluded for lack of foundation (fn. 3, 1650).

HOLDING

The statute is "not intended to create liability for damages on the part of employment-screening businesses that access, compile and republish information"; liability "should be limited to employers who 'use' information disclosed on the MLW as a basis for an employment decision" (1657). The plaintiff's claim, "if any, lies against his prospective employer" (1657–58). The violation is not criminal; then-subdivision (j) is "essentially an enhancement statute"; then-subdivision (l) "expressly prescribes civil remedies—including actual and exemplary damages, and a civil penalty" (1655). Registrants are not a FEHA protected class (1658–59, citing 89 Ops.Cal.Atty.Gen. 85 (2006)). Discovery into how the screener accessed the website was denied for lack of a relevance showing (1659). Remedy language was only quoted (1648); injunctive relief under then-(l)(4)(B) was noted in footnotes 2 and 4. No damages award.

KEY QUOTATIONS (CATALOG 08, ADDITIONAL)

Former (l)(1)–(2)(E) is quoted at 1655–56. "While a strong argument might be made that employees are persons at risk whom an employer has a duty to protect from a sexually violent predator, SASS was not employing persons to work with Mendoza." (1656). "Neither the term 'use' nor the phrase 'purposes relating to employment' is defined" (1656–57). Headnote 13: liability "limited to employers who 'use' information disclosed on the website as a basis for an employment decision."

HELPS / HURTS / CAUTION

Mixed. Helps against the employer who actually uses the listing as a basis for a decision; requires the complaint to connect the information to that decision. Hurts against a vendor or screening service. Does not address a coworker conduit. The "person at risk" sentence at 1656 is a defense-side risk. The remedies were then at (l); they are now at (j). *Mendoza* is not a finding of website use in this matter.

Donaleski v. Wal-Mart Stores, Inc., 2009 WL 1296257, 29 IER Cases 1228 (E.D. Cal. May 8, 2009) (Mendez, J.), No. 2:08-cv-00219-JAM-JFM

NO FLAG; 0 NEGATIVE · 4 citing references · Persuasive (E.D. Cal.) · Pins *3, *4, *5 · Guide checklist

POSTURE AND FACTS

Summary judgment for the defendant granted (removed from San Joaquin Superior Court). Counts under § 290.4(d)/290.46(l) and negligence. An hourly associate, Lopushkova, told a coworker her sister had recognized the plaintiff on a registry site; she looked him up on the Megan's Law website on her own; the information reached the store manager and a market HR manager, and then Analytical Research Center. Protocol said HR was not to consult the registry; HR did not. HR obtained a written "Associate Statement" with self-disclosed felony lewd-act convictions. A three-person Home Office Committee, unaware of the Megan's Law listing, terminated him in April 2007 "[b]ased solely on Plaintiff's self-disclosed criminal history."

HOLDING

No "use." Wal-Mart "did not terminate Donaleski because he was listed on the Website." The statute does not prevent an employer "from engaging in an independent investigation and obtaining personal information from the ex-offender even if the employer is aware that the ex-offender's information is displayed on the Website" (citing *Pastrana*, 2008 U.S. Dist. LEXIS 94612 at *36). Cat's-paw analogue: *Lakeside-Scott v. Multnomah County*, 556 F.3d 797, 799, 806 (9th Cir. 2009) — a "wholly independent, legitimate decision" breaks causation; no evidence the Committee knew of or considered the listing. Remedies sought: civil penalty plus damages "in excess of $75,000"; not reached.

HELPS / HURTS / CAUTION

Closest intermediary analogue; cuts both ways. The plaintiff needs evidence the decisionmaker used or considered the listing. An independent investigation plus self-disclosed criminal history, with a committee unaware of the listing, defeated the claim. Catalog 08 lists this case again as "employer's independent investigation not 'use.'"

McGroarty v. American Background Information Services, Inc., 2009 WL 980417 (C.D. Cal. Apr. 8, 2009) (Phillips, J.), EDCV 08-1360-VAP

NO NEGATIVE · 10 citing references · Persuasive (C.D. Cal.)

HOLDING

Rule 12(c) granted; dismissed with prejudice (CAFA removal). The screener accessed the Megan's Law website on all checks. "Mere access to and distribution of the information … are not bases for liability … so long as that person does not 'use' the information for an improper purpose" (*3). A screener "merely gains access …, collects it, and distributes it to prospective employers, who ultimately decide whether or not to 'use' the information" (*3). The 2004 deletion of a former § 290.4 misdemeanor showed intent. A Civil Code § 1786.20 claim failed. The catalog notes an internal inconsistency regarding a declaratory-relief claim. No remedies discussion. **Same "use" limit as *Mendoza*; *Walker* later quoted this passage.**

Pastrana v. Local 9509, CWA, 2008 WL 5054112, 185 L.R.R.M. 2606 (S.D. Cal. Nov. 20, 2008) (Whelan, J.), 06-CV-1779

NO NEGATIVE 13 citing references · Persuasive (S.D. Cal.) · Pins *11–*12 (holding); *10–*11 (after-acquired evidence)

FACTS AND HOLDING

Cross-motions for summary judgment granted in part. In February 2005 another supervisor told an area manager the employee was on the Megan's Law website; managers looked, contacted the labor office and asset protection; the employee was suspended the same day and discharged about February 18, 2005. He had disclosed a 1983 conviction at a 1997 interview; an investigator found no code violation. Holding: the § 290.46(l)(3) exception for § 11105 use applies (public utility, § 11105(c)(10)(A), home entry). The court rejected a requirement to get the information from DOJ (*Smith v. Doe*, 538 U.S. 84, 99). PacBell "did not rely solely on the information found on the website"; the listing "merely served … to provide PacBell with notice." Remedies were not reached; an after-acquired-evidence damages limit was discussed (*10–*11).

LATER DECISIONS (SAME CASE)

Pastrana, 2011 WL 9391 (S.D. Cal. Jan. 3, 2011) (Moskowitz, J.): reconsideration of the after-acquired-evidence limit denied; no § 290.46 analysis. *Pastrana*, 2007 WL 9776568 (S.D. Cal. July 25, 2007): leave to file a second amended complaint adding § 290.46 — snippet only; unverified.

HELPS / HURTS / CAUTION

Public-utility context; coworker or supervisor surfacing treated as notice, not use. The § 11105 exception will not necessarily travel outside a public-utility / home-entry setting, but the "notice rather than use" reasoning is a defense theme.

Lerma v. Amazon.com Services, LLC, 2023 WL 4681571 (C.D. Cal. May 26, 2023) (Slaughter, J.), 8:22-cv-01727-FWS-JDE

NO NEGATIVE 8 citing references · Persuasive (C.D. Cal.) · Pin *5 (source holding); *6–*7 (FCRA and UCL)

FACTS AND HOLDING

Rule 12(b)(6) motions by Accurate and Amazon granted with 30 days' leave. Claims under Megan's Law, FCRA, and UCL. The plaintiff had 2013 felony sex convictions; a contingent offer; an Accurate report dated March 22, 2022; pre-adverse notice on March 23; post-adverse on April 6, 2022. Holding: no plausible allegation that the information came from the Megan's Law website rather than public court records. A judicially noticed report showed 12 databases searched, with "record found" only in Orange County criminal records. The court need not accept allegations contradicted by noticed documents; it rejected a "competing theory" and a discovery request (*5). FCRA and UCL claims fell (*6–*7).

HELPS / HURTS / CAUTION

Best source on pleading the Megan's Law website-source inference. Check what documents the employer will place in the record. A sex-offense remark, or the existence of a conviction, does not by itself identify a statutory disclosure as the source — a gap the fact brief already flags.

Walker v. Ronin Staffing LLC, C.D. Cal. No. 2:24-cv-05669-CBM-SSC (Marshall, J.)

Three opinions. Principal: **2025 WL 2994548 (Oct. 10, 2025)** — NO FLAG; 0 NEGATIVE (catalog 08). Also 2025 WL 3691709 (Dec. 11, 2025) (supplemental-briefing order; no Megan's Law analysis) and 2026 WL 2794481 (Mar. 10, 2026) (leave to amend denied: FEHA unexhausted, Ralph Act futile). Status versus Ronin/UCLA unverified.

HOLDING (OCT. 10, 2025 OPINION)

Rule 12(b)(6) by Vaya Workforce Solutions (agent of UCLA Health) granted without leave. The second amended complaint alleged that employers "refused to hire Plaintiff because of conviction information Sterling obtained from the Megan's Law website." Dismissed: Vaya was an agent, not the employer, and there were no facts that it used the information; the court cited *Mendoza* at 1657 and *McGroarty* at *3; a liability waiver also barred the claim (*3). FCRA and UCL claims were derivative (*5–*6). A Fair Chance Act claim failed because Vaya did not make the rescission decision (*4). The opinion confirms that the current prohibition is at § 290.46(j)(2)(E), and quotes *McGroarty*: "Mere access to and distribution of the information … are not bases for liability … so long as that person does not 'use' the information for an improper purpose." The offer was rescinded on sex-offender status. Claims were under § 290.46, the Fair Chance Act (Gov. Code § 12952), § 1681b(b)(3), and the UCL.

HELPS / HURTS / CAUTION

Helps: the employer is the proper defendant, and the current subdivision is (j)(2)(E). Hurts vendor and agent claims. Newest § 290.46 employment decision found; no later decision after September 2026.

Other § 290.46 decisions (limited or not useful)

Recorded in catalogs 01 and 08. Several were not fully read.

CROSS V. COOPER, 197 CAL.APP.4TH 357 (6TH DIST. 2011)

YELLOW; 16 NEGATIVE. Anti-SLAPP. A § 290.46 violation is not "illegal" under *Flatley* (389–90); propriety of use "depends on whether the use was intended to protect a person at risk" (390–91). Catalog 01: marginal.

MCCALLUM V. BATISTA, 2020 WL 1150273 (CAL. CT. APP. 5TH DIST. MAR. 10, 2020)

UNPUBLISHED; RED FLAG (catalog 01). HOA meeting; deemed admissions; summary judgment affirmed. Catalog 01: irrelevant. Catalog 08 records, from a search snippet only (the opinion itself was not opened — the document limit hit as it was being opened), that it quotes the remedy: "actual damages, and attorney's fees, exemplary damages, or a civil penalty not exceeding [$25,000]," citing former subdivision (l)(4)(A). That snippet is not a verified holding. The CCP § 340(a) question was to be read here and remains undetermined.

OTHERS

Rojas v. Department of Animal Care & Control, 2008 WL 3916312 (unpublished; government-claims bar only; constructive-discharge allegation under (l)(2)(E)). *Adamski v. Martis*, 2007 WL 2019565 (N.D. Cal.) (TRO denied; housing; half read; no civil-remedy damages award). *Mitchell v. Brown/Harris*, *Richardson v. Becerra* (catalog 08 lists *Richardson v. Barr*, 827 F. App'x 624 (9th Cir. 2020)), *Hatton v. Bonner*, *People v. Jones*, *Fredenburg*, *In re William M.*, *Doe v. Cal. DOJ*, *People v. Garcia*, *People v. Oliver*, *People v. Presley*, 156 Cal.App.4th 1027 (2007), *Doe v. Brown*, 177 Cal.App.4th 408 (2009), *Wilson v. City of Pomona*, 2024 WL 2964839 (C.D. Cal.) — catalog 01 describes the first group as irrelevant; catalog 08 lists the latter as search hits, not as opened opinions. **Unread:** *Towner v. County of Ventura*, 63 Cal.App.5th 761 (2021, yellow); *Rosen v. City of Hawthorne*, 2025 WL 618239 (red); anti-SLAPP citing cases. *Sharp v. Jules and Associates* — no matching case found; do not cite (see Section 8).

PLEADING IMPLICATION (GAPS 1–5 IN THE FACT BRIEF)

Plead which person acquired or received what information traceable to a statutory disclosure, a plausible Megan's Law website source (not merely a sex-offense remark or a visible name or monitor), the employment use, the basis for attributing that use to each defendant, and injury tied to that use. Expect the defense to argue "person at risk," independent investigation, self-disclosure, coworker "notice," and vendor-or-agent non-use. Fair Chance Act (Gov. Code § 12952) and Labor Code § 432.7 comparators were suggested in catalog 01 and were not run. An exact-subsection re-run of "290.46(j)" / "290.46(j)(4)" was also suggested; catalog 04 later ran an exact-subsection query (6 cases, 0 statutes, 18 secondary sources) and a broad "290.46" search (440 cases, 38 statutes), still with no damages award.

3.2 Cat's paw — Mendoza, Staub, Poland, France, and California applications

Plain-English answer. Cat's paw is a causation theory, not a stand-alone count, and USERRA's burden is not to be transplanted into § 290.46 (fact brief, Volume 01 and Volume 07). The Supreme Court in *Staub* held that if a supervisor performs an act motivated by forbidden animus, intended to cause an adverse action, and that act is a proximate cause of the ultimate action, the employer is liable. A later review or "independent investigation" is not an automatic defense if the investigation takes the biased input into account. The Court reserved the coworker question (Volume 07; catalog 02 notes the Title VII footnote was not opened and should be verified).

The Ninth Circuit in *Poland* and *France* asks whether the biased subordinate "influenced or was involved in the decision or decisionmaking process." California published cases use a "significant participant" formulation (*DeJung* at 551, as quoted in later opinions; *Reeves* at 110; *Hoglund* at 76–77; *Lin* at 722–23) and the substantial-motivating-factor standard (*Harris*). Supervisor input is clearly covered. Peer, coworker, or trainer input is unsettled: *Reeves* footnote 9; *Miller v. T-Mobile* (rejected on a non-supervisory coworker); *Birden* (instruction refused); *Hamilton* (trainer; summary judgment for the employer affirmed for lack of evidence of orchestration). Favorable but noncitable: *Harper* (subordinate's complaints; CACI 2511) and *Kaabinejadian* ("biased coworkers"). No best-match trainer-evaluation-to-shift-cut case was found. *Staub*, *Poland*, and *France* all carry yellow flags. France's citing-reference KeyCite was not run in session 1; flag counts were captured later in Session A-2.

KeyCite runs (session 1): *Staub* filtered to Cases / Ninth Circuit / California district / California state = 73; within for "trainer OR coworker OR evaluation OR attendance OR timecard OR schedul! OR hours" = 64 (includes about 6 Federal Circuit hits; filter to verify). *Poland* filtered to Ninth Circuit + California district = 283 (California state 3 not added); within = 220; page 1 captions only. Session 2 search: ("cat's paw" OR "biased subordinate") /p (trainer OR coworker OR evaluation OR attendance OR timecard) = 50 (federal 32, Cal. App. 18; 6 reported / 44 unreported; Employment 42). The same query in California state only = 18. Reeves and DeJung KeyCite details were listed as "NOT STARTED" in session 1; session 3 captured Reeves's 25 negative treatments (first 20 listed; entries 21–25 not read) and Lin's one "Distinguished by."

3.2.1 The four starting authorities, KeyCited

Staub v. Proctor Hospital, 562 U.S. 411, 131 S.Ct. 1186 (Mar. 1, 2011)

YELLOW 104 negative treatments · 7,148 citing references (1,763 cases) · Binding (Supreme Court, USERRA) · Most negative recorded: *Connecticut Fair Housing Center v. CoreLogic*, 167 F.4th 605 (2d Cir.), declined to extend · Pins 413–415, 419–421, 422–423

POSTURE

USERRA jury verdict of $57,640 for the employee; Seventh Circuit reversed with judgment as a matter of law; Supreme Court reversed.

HOLDING AND QUOTATIONS

At 422: “if a supervisor performs an act motivated by antimilitary animus that is intended by the supervisor to cause an adverse employment action, and if that act is a proximate cause of the ultimate employment action, then the employer is liable under USERRA.” At 419–420: the decisionmaker’s judgment is not a superseding cause; there can be multiple proximate causes. At 420: the employer cannot isolate a personnel official reviewing the file. At 420–421: an independent investigation is not an automatic defense — “We decline to adopt such a hard-and-fast rule.” At 421: “if the employer’s investigation results in an adverse action for reasons unrelated to the supervisor’s original biased action … then the employer will not be liable. But the supervisor’s biased report may remain a causal factor if the independent investigation takes it into account without determining that the adverse action was, apart from the supervisor’s recommendation, entirely justified.” Biased input: a supervisor “Corrective Action” write-up, a supervisor violation report, a coworker complaint about “availability”; termination by the HR vice president after a file review (413–415, 422–423).

LIMITS AND CAUTION

USERRA motivating-factor standard; post-trial posture. The Court reserved the coworker question. A footnote reserving Title VII was not opened (catalog 02: verify). Cat’s paw is not a holding about the meaning of § 290.46.

Poland v. Chertoff, 494 F.3d 1174 (9th Cir. July 20, 2007)

YELLOW 18 negative treatments · 2,040 citing references (696 cases) · Binding (Ninth Circuit) · Most negative recorded: *Larson v. Idaho State University*, 2022 WL 1806302 (D. Idaho), abrogation recognized; also *Porter v. Mabus*, 2014 WL 4436303 · Pins 1181–82, 1182, 1183

POSTURE

ADEA retaliation bench trial for the employee, affirmed in part; the adverse action was a transfer.

HOLDING AND QUOTATIONS

At 1182: “if a subordinate, in response to a plaintiff’s protected activity, sets in motion a proceeding by an independent decisionmaker that leads to an adverse employment action, the subordinate’s bias is imputed to the employer if the plaintiff can prove that the allegedly independent adverse employment decision was not actually independent because the biased subordinate influenced or was involved in the decision or decisionmaking process.” The court rejected a but-for-only rule and a narrow rubber-stamp rule (1181–82). At 1183: “if an adverse employment action is the consequence of an entirely independent investigation by an employer, the animus of the retaliating employee is not imputed.” Imputed there because the panel had the biased subordinate’s memo, a witness list, and a coworker’s performance notes. Later cases also cite 1184 (constructive discharge, “extraordinary and egregious”; “high bar”) and 1180 (materially adverse action) — those uses, in *Swirski* and *Kincheloe*, were not cat’s-paw holdings.

France v. Johnson, 795 F.3d 1170 (9th Cir. Aug. 3, 2015)

YELLOW ("Distinguished by *Mattioda v. Nelson*, 9th Cir., Apr. 22, 2024") 6 negative treatments · 591 citing references · Binding (Ninth Circuit) · Pins 1175, 1176 (session 1 did not run citing-reference KeyCite; most-negative case for France was not captured in Session A-2)

HOLDING

Summary judgment for the employer on an ADEA non-promotion claim reversed. At 1176: the speaker need not be the final decisionmaker; a causal link exists if a "biased subordinate influenced or was involved in the decision or decisionmaking process" (citing *Poland* at 1182). Evidence: he created positions, others deferred, and he recommended finalists who were adopted unchanged. At 1175: the pretext burden is "hardly an onerous one." Volume 07 (fact brief) also cites 1176–77 and notes that neither *France* nor *Poland* decides the meaning of § 290.46.

Reeves v. Safeway Stores, 121 Cal.App.4th 95, 16 Cal.Rptr.3d 717 (6th Dist. July 29, 2004) (Rushing, P.J.)

YELLOW 25 negative treatments (no negative direct history) · 2,991 citing references; 4 filings · Published California authority · First negative seen: "Not Followed as Dicta" by *Pipitone v. Williams*, 6th Dist., Feb. 23, 2016; also "Called into Doubt" by *Mamou v. Trendwest Resorts*, 81 Cal.Rptr.3d 406 (6th Dist. 2008). Entries 21–25 not read; which of the 25 address footnote 9 is unverified. Volume 07 cites 100, 107–13.

HOLDING AND QUOTATIONS

Summary judgment for Safeway on retaliation (after harassment complaints) reversed: the decisionmaker's ignorance does not negate causation; other managers' animus is imputable; triable issues existed on lower managers' animus. The chain: Juarez reported a confrontation as a battery; Demarest referred it to security; Harrison investigated and recommended; district manager Hollis adopted the recommendation after a 20-minute call — "little more than the ratification." At 108–109: "plaintiff can establish the element of causation by showing that any of the persons involved in bringing about the adverse action held the requisite animus, provided that such person's animus operated as a 'but-for' cause." Illustration: a manager "accepting the fabricated case at face value … entirely without animus"; it would be "absurd" to deny causation; "utilization of a complex management structure … cannot have the effect of insulating the employer." Footnote 9 (109): "Our emphasis on the conduct of supervisors is not inadvertent… The outcome is less clear where the only actor possessing the requisite animus is a nonsupervisory coworker." At 113 ("B. Cat's Paw"): "it is not enough to show that one actor acted for lawful reasons when that actor may be found to have operated as a mere instrumentality or conduit for others who acted out of discriminatory or retaliatory animus, and whose actions were a but-for cause of the challenged employment action. If a supervisor makes another his tool for carrying out a discriminatory action, the original actor's purpose will be imputed to the tool." At 113–114, quoting *Shager v. Upjohn*, 913 F.2d at 405 ("conduit of Lehnst's prejudice—his cat's-paw"). At 114, citing *Reeves v. Sanderson Plumbing*, 530 U.S. 133, 151–152, and surveying *Bergene v. Salt River Project*, 272 F.3d 1136, 1141 (9th Cir. 2001), and *Russell v. McKinney Hospital*, 235 F.3d at 226 ("influence or leverage over the official decisionmaker, and thus were not ordinary coworkers"). At 116: "We have no doubt that California law will follow the overwhelming weight of federal authority and hold employers responsible where discriminatory or retaliatory actions by supervisory personnel bring about adverse employment actions through the instrumentality or conduit of other corporate actors who may be entirely innocent."

HELPS / HURTS / CAUTION

Helps on the innocent decisionmaker and on ratification after a short review. Footnote 9 is a vulnerability if the trainer is characterized as a nonsupervisory coworker. Catalog 02 also notes "but-for" language here versus *Lin*'s substantial-motivating-factor standard. The first 20 of 25 negative treatments are listed in catalog 02, session 3 (Pipitone, Mamou, Marvel, Tu Le, and many "Distinguished by" entries); they were not individually opened.

3.2.2 California and Ninth Circuit applications that were read

Lin v. Kaiser Foundation Hospitals, 88 Cal.App.5th 712, 304 Cal.Rptr.3d 820 (2d Dist., Div. 4, Feb. 24, 2023) (Daum, J., by assignment)

YELLOW 1 negative treatment (not opened): *Stewart v. County of Los Angeles*, 2023 WL 4768765 (Cal. Super. Mar. 28, 2023), "Distinguished by," depth 13 stars; content not read · 140 citing; 13 filings

HOLDING

Summary judgment on FEHA disability discrimination, retaliation, and failure to accommodate reversed and remanded. The biased actor was direct supervisor Manne; the decisionmaker was Executive Director Henriquez (who put Lin on a RIF list in December 2018 before the injury; a jury could find he kept her on after the injury). Input: Manne's January 29, 2019 competency ratings (Lin 9/20 versus four teammates at 16+), criticisms to HR of "slow delivery," "slower typing?," and "pace of execution," tied to medical appointments; prior written evaluations had been "Successful Performance." At 726–27: "a reasonable jury could find that Henriquez relied, at least in substantial part, on Manne's negative performance evaluations and on Manne's disability-related animus in deciding that Lin would not be removed from the RIF list and her employment would be terminated." Kaiser "does not dispute" the evaluations went to Henriquez. At 722–23, quoting *DeJung*, 169 Cal.App.4th at 551: "showing that a significant participant in an employment decision exhibited discriminatory animus is enough to raise an inference that the employment decision itself was discriminatory." Substantial-motivating-factor standard (*Harris*).

HELPS / HURTS / CAUTION

Helps strongly — closest published case: a biased evaluation feeding a decisionmaker despite a legitimate competing (RIF) reason. Gap: the biased actor was a supervisor, not a peer trainer. Contemporaneous documents silent on performance, and remarks tying pace to disability, were important evidence.

Hoglund v. Sierra Nevada Memorial-Miners Hospital, 102 Cal.App.5th 56 (3d Dist. May 17, 2024) (C097065)

YELLOW 2 negative treatments: *Wolpert v. Clear Channel Outdoor*, 2025 WL 2936909 (Cal. Super.), distinguished; *Charles v. County of Alameda*, 2026 WL 524232 (1st Dist. Feb. 25, 2026, itself red-flagged), distinguished · Partially published; bench trial for the employee on FEHA age discrimination, harassment, and wrongful termination, affirmed

HOLDING AND QUOTATIONS

The supervisor's animus supplied motive under cat's paw. Biased actor: lab supervisor Horne (formal authority) — age comments ("babies … easier to train"; "too old to be running around"; "should have just retired"); refused to train Hoglund on a new computer system and trained younger Prout. Decisionmakers: Plass, Lucas (and Horne). Input: Horne's account of Hoglund's role (outreach) and of Prout's superior computer skills. Evidence: Horne testified she was one of three decisionmakers; Plass and Lucas lacked firsthand knowledge and accepted Horne's account "without inquiry"; the outreach-manager position was never created; Hoglund was more experienced and still training Prout. At 76: "'cat's paw' refers to a situation in which a biased subordinate, who lacks decisionmaking power, uses the formal decisionmaker as a dupe in a deliberate scheme to trigger a discriminatory employment action" (*EEOC v. BCI Coca-Cola*, 450 F.3d at 484); "significant participant" animus is "enough to raise an inference that the employment decision itself was discriminatory" (*DeJung* 551; *Reeves* 110). At 77: "Horne was a significant decision maker"; decisionmakers "relied on Horne for information"; "sufficient to show that Horne was a significant participant in the decision to fire Hoglund." At 77–78, pretext: no firsthand knowledge, unaware Horne had denied training. The court did not decide the coworker issue or independent investigation.

HELPS / HURTS / CAUTION

Helps on the standard (reliance on uncorroborated biased information). Distinguishable because Horne was a supervisor and co-decisionmaker.

Miller v. T-Mobile USA, 2025 WL 3085722 (N.D. Cal. Nov. 5, 2025) (Gilliam, J.)

NO FLAG; 0 NEGATIVE 3 citing references · Persuasive (N.D. Cal.) · Pin *10

HOLDING

Summary judgment granted in part and denied in part; the discrimination claim including cat's paw was granted for the defendant. The allegedly biased actor, Georges, was a trainee/subordinate one step below the plaintiff (Retail Associate Manager). The decisionmaker, Market Manager Murillo, relied on an HR investigation report. Input: alleged false reports (profanity, April 2022) that triggered an August 2023 investigation; racial and sexual-orientation remarks. Reasoning: *Poland* and *France* all involved a supervisory biased subordinate; *Reeves* footnote 9 cabins the doctrine to supervisors; no California case extends it to a non-supervisory coworker; California focuses on involvement in the decision, not just the investigation. At *10: "The Ninth Circuit has yet to address whether a coworker's biased conduct supports cat's paw liability." "[T]he Court cannot conclude that the California Supreme Court would extend the doctrine to cover the circumstances in this case." The court cited *France* 1176, *Poland* 1182, *Hoglund*, 102 Cal.App.5th at 76, *Martin*, *Lin*, and *Staub* (coworker question open). The plaintiff failed to address the coworker-versus-supervisor point.

HELPS / HURTS / CAUTION

Risk case if the trainer is a peer. The result may differ if the trainer had evaluative authority. This is a 2025 Northern District of California opinion applying California law; it is persuasive only.

Hamilton v. Orange County Sheriff's Department, 2020 WL 4345169 (4th Dist., Div. 3, July 29, 2020)

UNPUBLISHED; RED; 1 NEGATIVE Not citable in California courts (CRC 8.1115) · Pin *4

HOLDING

Summary judgment for the employer on race discrimination affirmed. The allegedly biased actor was Deputy Sandberg, an academy trainer, with no decision authority (recalled statements: "his job to get her thrown out"; "Beat her, Felix"; "I'm not going to give it to you" on a staff evaluation; "Sarge, she needs to go"). Decisionmakers ran from Sergeant Missel to Lieutenant Virgoe to Captain Bland (an African-American woman) to a commander. Stated reasons: poor performance, perceived lack of motivation, an apparent lie; others conceded no animus. At *4: "Deputy Sandberg was not the ultimate decision maker, and there is a complete dearth of evidence that he somehow orchestrated the actual decision makers." "The notion that his recommendation somehow influenced his fellow staff trainers and the entire chain of command … is far-fetched." "An inference is reasonable if, and only if, it implies the unlawful motive is more likely than defendant's proffered explanation" (*Cucuzza*, 104 Cal.App.4th at 1038–39).

HELPS / HURTS / CAUTION

Hurts — closest trainer facts. The plaintiff needs proof of the trainer's protected-trait motive and of actual influence. Distinguishable if the manager relied directly on the trainer's evaluation. Unpublished; background only in California courts.

Martin v. Board of Trustees of California State University, 97 Cal.App.5th 149, 315 Cal.Rptr.3d 117 (2d Dist., Div. 8, Nov. 14, 2023) (Viramontes, J.)

NO FLAG; 0 NEGATIVE 263 citing references · Published · Pin *169

HOLDING

Summary judgment for the university affirmed (FEHA gender, race, and sexual-orientation discrimination, harassment, and failure to prevent). The allegedly biased actor, Oh, was a temporary employee the plaintiff supervised, who complained and was gone before the firing. Decisionmakers: Noblitt and de la Vega. Input: Oh's complaint and investigation, and a Sundial newspaper article. No evidence it influenced the decision; an appeasement theory was speculative. At 169: Martin "points to no evidence that Oh played a significant role in deciding to terminate him"; the standard is "evidence 'that a significant participant in an employment decision exhibited discriminatory animus'" (*DeJung* 551); citing *Reid v. Google*, 50 Cal.4th at 542 (conduit). **Neutral to hurts** — sets a "significant participant" evidentiary threshold.

Additional cat's-paw decisions that were read (shorter entries)

Catalog 02, sessions 1–3. Several are unpublished or unverified on posture or flag.

KISMAN V. UNITED PARCEL SERVICE, INC., 2023 WL 11822264 (C.D. CAL. NOV. 14, 2023), *14

Employer liable where a supervisor "performs an act motivated by animus that is intended and does cause ultimate employment action" (*Staub* 422; *Reeves*, 121 Cal.App.4th at 114 (2004)); supervisors Cote and Terpening's animus-driven acts led to discipline and termination, defeating UPS's argument that a committee did not consider a medical condition. Posture (summary judgment) inferred; disposition and flag unverified. Catalog 02: "Best plaintiff-side California-law passage read."

AREOPAJA V. MORRISON MANAGEMENT SPECIALISTS, 2023 WL 2540419 (C.D. CAL. MAR. 14, 2023)

Citing *Poland* at 1184; triable issue whether the employer considered CFRA leave in a termination; a manager supplied the decisionmaker an attendance record ("ACR") of absences and occurrence points; stated reason was excessive absences. Posture (summary judgment) unverified. Analog for an attendance record flowing through a manager.

CARBAJAL V. OMNI HOTELS MANAGEMENT CORP., 2023 WL 4317788 (C.D. CAL. MAY 30, 2023), *5

Summary judgment; no evidence a coworker who reported the plaintiff acted from injury bias or intended firing (*Staub* 422, via *Tsur v. Intel*, 2021 WL 4721057). Catalog 02: defense-side hotel case.

SWIRSKI V. PROTEC BUILDING SERVICES, 2021 WL 5771222 (S.D. CAL. DEC. 6, 2021) (BURNS, J.)

NO FLAG; 0 NEGATIVE; 10 CITING. Summary judgment for the defendant on ADEA/FEHA/Title VII age discrimination, hostile work environment, retaliation, and constructive discharge. No cat's-paw content (no "paw," "subordinate," or "influence"). *Poland* cited only for constructive discharge (1184, 1185–86) and at *9 for 1180 (materially adverse action). At *7, quoting *Harris v. City of Santa Monica*, 56 Cal.4th at 231: "section 12940(a) does not purport to outlaw discriminatory thoughts, beliefs, or stray remarks that are unconnected to employment decisionmaking." Neutral to hurts.

KINCHELOE V. AMERICAN AIRLINES, 2022 WL 1409235 (N.D. CAL. MAY 4, 2022) (FREEMAN, J.)

NO FLAG; 0 NEGATIVE; 7 CITING. Second amended complaint dismissed without leave; ADEA collective, constructive discharge. No cat's-paw content. *3–4, *Poland* at 1184 "high bar." Ninth Circuit affirmance, 2023 WL 3299989, not opened. Irrelevant to cat's paw.

KAABINEJADIAN V. RABOBANK, N.A., 2018 WL 2949259 (4TH DIST., DIV. 2, JUNE 13, 2018) (RAMIREZ, P.J.)

RED; 1 NEGATIVE; UNPUBLISHED/NONCITABLE (CRC 8.1115) — background only. Summary judgment for the employer reversed on national-origin discrimination and retaliation. At *8: "Under this theory, an employer can be liable for a termination decision by an unbiased decision-maker, provided the decision-maker was influenced by biased coworkers." (citing *Reid v. Google* at 542; *DeJung* 551–552; *Reeves* 113–116). Helps, not citable. Contemporaneous notes omitting a stated reason (credit skills) were pretext evidence; one actor described another's input as "the catalyst for the decision."

BIRDEN V. REGENTS OF THE UNIVERSITY OF CALIFORNIA, 2021 WL 3560233 (2D DIST., DIV. 2, AUG. 12, 2021) (CHAVEZ, J.)

RED; 1 NEGATIVE; NOT REPORTED IN CAL.RPTR. (VERIFY CITABILITY). Jury trial; judgment modified — $276,145.92 in lost wages struck as inconsistent with a finding that termination was lawful; $1.3 million noneconomic affirmed as modified (the appeal reduced $1,576,145.92 to $1.3 million by striking lost wages). The trial court refused the plaintiff's cat's-paw instruction; that refusal was not appealed. "Anukul could have been found to be the 'cat's paw' for other individuals' discrimination." At *12, citing *Reeves* 109 fn. 9. The refused instruction "would have permitted the jury to find wrongful termination if it found that Anukul acted as a conduit of respondent's former coworkers who harbored discriminatory motives." Lesson: request and preserve the instruction. Also a damages data point ($1.3 million noneconomic surviving, on harassment). Computation method for the struck wages was not shown (catalog 03). Lesson on damages: lost wages must flow from the adverse action found.

HARPER V. REGENTS OF THE UNIVERSITY OF CALIFORNIA, 2026 WL 1379141 (1ST DIST., DIV. 3, MAY 15, 2026) (A170590/A171502)

UNPUBLISHED/NONCITABLE (CRC 8.1115); RED; 1 NEGATIVE (NOT OPENED). Jury verdict for the plaintiff, FEHA race discrimination, $6.2 million; affirmed. The biased actor was Sergeant Lunnen, the plaintiff's **subordinate** with no evaluative authority. The Regents argued no cat's paw "where the only actor possessing the requisite animus is a nonsuper-

visory coworker" (*Reeves* fn. 9) and that an independent investigation breaks the link. At *11–12: not reached — the jury was not so instructed; CACI 2511 required race to be a substantial motivating reason for "James Lunnen's complaints" and the complaints a substantial motivating reason for the decision. At *12: "Lunnen's complaints … amply supported by evidence of the pivotal role Lunnen played"; the court rejected an investigation/independent-judgment break. Helps factually (subordinate's biased complaints; investigation is no automatic break; CACI 2511 framing); noncitable; coworker issue undecided. Lunnen hand-delivered complaints and supplied much of the evidence.

WHITHORN V. CITY OF WEST COVINA, 2025 WL 1894831 (2D DIST., DIV. 8, JULY 9, 2025)

UNPUBLISHED; RED; 1 NEGATIVE. Jury verdict for a fire chief, $4.1 million; affirmed. A councilmember (not a supervisor) called him "absentee chief" during medical leave, pressed for firing, and helped bring in the city manager (the decisionmaker). At *11: cat's paw "does not require a showing that every participant … had a discriminatory animus. It is sufficient if one significant participant had such animus" (*DeJung*); the City's argument was waived (no authority). Footnote 8: "A 'cat's paw' case is one in which a biased individual passes along negative information about a coworker to an 'unbiased' decision maker." (*Reeves* 112–114). Helps; "absentee" parallels an attendance rationale; mostly waiver. Also a damages data point ($4.1 million). Noncitable.

DURAN V. ATLANTIC MEMORIAL HOSPITAL ASSOCIATES, 2020 WL 1698399 (2D DIST., DIV. 7, APR. 7, 2020)

UNPUBLISHED; RED; 1 NEGATIVE; 1 CITING. Summary adjudication for the employer on pregnancy/disability discrimination and constructive discharge affirmed. Coworkers called her "fat," "young," "stupid," and complained of lateness and absence; no evidence supervisors knew. Footnote 16 (~*12): the stray-remarks doctrine "has been discredited" (*Reid v. Google*); "Neither doctrine is applicable here" — no adverse action (no constructive discharge; harassment not actionable). Hurts slightly; distinguishable if a shift cut is pleaded as an adverse action.

MILLER V. LEMHI COUNTY, 2018 WL 1144970 (D. IDAHO MAR. 2, 2018) (NYE, J.) (4:15-CV-00156-DCN)

NO FLAG; 0 NEGATIVE; 34 CITING. Motions in limine. Coworkers allegedly obtained old timecards against county policy and coordinated false timecard-fraud statements. At *5, cat's paw: quotes *BCI Coca-Cola* and *Staub* ("the employer is liable"); Miller "alleges that her biased co-workers … fabricated a story about her falsifying her timecards" as proximate cause. Helps on theory (coworker-fabricated timecard allegation framed as cat's paw); evidentiary only; not California. A related 2018 WL 2590338 opinion appeared in the session 2 top-20 list and was not separately cataloged as fully read.

SYNTHESIS (CATALOG 02, AS OF SESSION 3) AND PLEADING IMPLICATION (GAPS 6–13)

Evidence that wins: the decisionmaker lacked firsthand knowledge and relied on the biased person's input (*Hoglund*, *Lin*, *Reeves* "ratification"); contemporaneous documents inconsistent with the stated reason (*Lin*, *Kaabinejadian*); the biased person personally delivered the input (*Harper*). Evidence that loses: no proof of influence (*Martin*, *Hamilton*); stray remarks unconnected to the decision (*Swirski*/*Harris*). Pivotal facts for Matter 44: whether the trainer had supervisory or evaluative authority, and whether the manager actually received and relied on the evaluation. Threatened report, without actual transmission and reliance, is the fact brief's own open item. A competing attendance, timecard, and notice-policy explanation is in the documents and will have to be met with influence evidence, not merely with the existence of remarks. *Reid v. Google, Inc.*, 50 Cal.4th 512 (yellow; 23 negative treatments; pins in Volume 07 at 539–41, and 542 as a conduit cite), rejects categorical exclusion of so-called stray remarks at California summary judgment — "Use context and linkage to the decision." *Patterson v. Domino's Pizza, LLC*, 60 Cal.4th 474 (yellow; 8 negative), and *Soo Park v. Thompson*, 851 F.3d 910 (yellow; 6 negative; Volume 07 cites 928–29), were KeyCited for flags only; most-negative cases were not captured. *Vasquez v. Empress Ambulance Service, Inc.*, 835 F.3d 267, 273–76 (2d Cir. 2016), is in Volume 07 as "persuasive only" and was not independently KeyCited in these Westlaw sessions. Long unread-lead lists from the *Staub* and *Poland* citing-reference runs are in catalog 02 and are not repeated as authorities here.

3.3 Reduced hours as an adverse action, and proof of hours

Plain-English answer. Published California law supports treating a cut in scheduled hours as a material adverse employment action even for a worker with no guaranteed hours. *Light* is the lead case. Federal district authority is consistent that even a small reduction in hours, with a corresponding reduction in pay, can be adverse in a retaliation case (*Menchu*), though proof of the cut is not proof of motive. The plaintiff must plead the cut expressly, as a distinct adverse action, with before-and-after hours, duration, and comparators (*Kahle*, *Ballinger*). Courts measure expected hours from an actual recent baseline, not from a speculative full-time or assumed future schedule (*Smith v. City of Oakland*; *Daley*; *Ornelas*). Make-whole expert modeling is allowed, but the baseline assumption is contestable (*Clemente*). No California or Ninth Circuit case was found that resolves missing-employer-record uncertainty against the employer in a discrimination back-pay setting, and none that was read computed lost wages from schedules in a part-time cut-hours case. Whether the *Mt. Clemens* burden shift applies to FEHA back pay is still open. *Hollis v. SKC Investment* discusses *Mt. Clemens* wage-proof principles but is not a FEHA comparator.

Search (catalog 03, first pass; Cases, CA-CS-ALL + CTA9_D; also pulled D. Or.): (“reduced hours” OR “reduction in shifts” OR “loss of shifts” OR “reduction in hours” OR “cut his hours” OR “cut her hours”) /p (“adverse employment action” OR “lost wages”) = 44 cases. Six were fully read; *Birden* partly; *Kahle* blocked on that pass and opened in session 4. Task B search (session 4; CA state + federal, CA-CS-ALL): (“lost wages” OR “back pay” OR “backpay”) /p (“part-time” OR “no guaranteed hours” OR “average hours” OR schedule OR schedules) /p (calculat! OR comput! OR estimat! OR approximat!) — 61 results (46 federal, 15 California). The top 40 were mostly CAFA/removal and criminal restitution. Follow-up *Mt. Clemens* / reduced-hours back-pay searches: 0, 0, 1 (*Jimenez v. Allstate*, class overtime, not opened), 1 (*Black v. Board of Trustees*, 46 Cal.App.4th 493, not re-opened). Suggested next query: `“Mt. Clemens” & (FEHA OR “Title VII”) & (“back pay” OR backpay)`.

Matter 44 roster-scheduled hours, as the fact brief and catalog 03 record them: 39.5, 40, 33, 32, 24, 16 (about a 60% drop from the early-October level). The catalogs say the baseline should be pegged to the documented pre-cut weeks, and the gap is cumulative from week 3 onward. The written offer does not guarantee 32 hours or a 2+2 mix; it is part-time and at-will. Scheduled declines alone do not establish that all shifts would otherwise have continued (Volume 07).

Light v. Department of Parks & Recreation, 14 Cal.App.5th 75, 221 Cal.Rptr.3d 668 (4th Dist., Div. 1, Aug. 8, 2017)

YELLOW · 6 negative treatments · 1,080 citing references · No negative direct history · Published (FEHA retaliation portion) · Pins 91–93, 92–93

POSTURE AND FACTS

Summary judgment reversed on FEHA retaliation and failure to prevent retaliation; affirmed on disability discrimination and other claims. The plaintiff was an "intermittent" Office Assistant, with no guaranteed hours and a normal 1,500-hour annual cap. After alleged retaliation she was told her last scheduled day was May 30, 2012, and "no hours will be scheduled" until funding and workload allowed; on return a manager said the maximum was 25 hours per week.

HOLDING AND QUOTATIONS

At 93 (first-pass catalog): "Even setting aside the other actions, the reduction of Light's hours alone could constitute a material and adverse employment action." The court rejected a "seasonal" characterization; zero hours effectively suspended employment. At 91–93: FEHA uses the *Yanowitz* standard — "materially affect the terms, conditions, or privileges" — not the federal deterrence test. Session 4 KeyCite quotes at 92–93: she was a permanent intermittent office assistant "not guaranteed full-time, regular hours"; "the reduction of Light's hours alone could constitute a material and adverse employment action"; "The Department's assertion that it had nonretaliatory reasons for the reduction in hours (i.e., normal seasonal fluctuations in hours) is irrelevant to the issue of whether it was an adverse employment action." Hours cut to zero "may reasonably be interpreted as a material and adverse change." No back-pay computation.

NEGATIVE TREATMENTS (SESSION 4 KEYCITE)

1. *Reef v. Jani-King of Cal.*, 2018 WL 707560 (N.D. Cal. Feb. 5, 2018) — Declined to Follow — HN 28. 2. *Theno v. Abbott Labs.*, 2020 WL 5991617 (C.D. Cal. July 15, 2020) — Declined to Extend — HN 36. 3. *Rice v. FCA USA LLC*, 2018 WL 345731 (Cal. Ct. App. 4th Dist. Jan. 10, 2018) — Distinguished — none listed. 4. *Voellger v. Dignity Health*, 2020 WL 13505420 (N.D. Cal. July 27, 2020) — Distinguished — HN 28. 5. *Voellger v. Dignity Health*, 2020 WL 13505419 (N.D. Cal. Dec. 21, 2020) — Distinguished — HN 29, 32, 36. 6. *Fityan v. World Courier, Inc.*, 2025 WL 303952 (N.D. Cal. Jan. 27, 2025) — Distinguished — HN 29, 30, 36. **Inference (unverified, from headnote numbers only):** the negative treatments appear to target later headnotes (likely workers'-compensation exclusivity / IIED), not the adverse-action holding. Verify before relying.

HELPS / HURTS / CAUTION

Helps strongly — published California authority that cutting a no-guaranteed-hours employee's scheduled hours can be adverse. Documented budget or seasonal reasons, and motive, still matter for liability, even if they are irrelevant to whether the cut is an adverse action.

Menchu v. Multnomah County Health Department, 2024 WL 4242514 (D. Or. Aug. 16, 2024) (findings and recommendation)

FLAG NOT SHOWN · Persuasive (D. Or.) · Pins *11–12

HOLDING

Recommended summary judgment for the employer on all claims. The plaintiff was an on-call interpreter, with no set schedule; expected at most 20 hours per week but often more than 40 (2016–early 2020). 2019 paystubs: June hours and pay lower than the prior five months; a scheduler testified she was told to reduce Menchu's hours — enough to show a reduction. At *11: "Even a small reduction in hours (and a corresponding reduction in pay) is an adverse employment action in the retaliation context." Causation failed: a previously announced four-appointment-per-day limit and an intervening payroll audit; one two-appointment day was insufficient given normal variability (*11–12). Proof method: paystubs, appointment and invoice records, a five-month baseline, and scheduler testimony. No back pay computed.

HELPS / HURTS / CAUTION

Helps (a small cut is adverse; multi-month baseline). **Hurts** (proof of a cut is not proof of motive; a neutral pre-announced policy and an audit defeated causation).

Kahle v. Lilo Enterprises Inc., 2026 WL 2529482 (D. Ariz. Aug. 27, 2026) (Lanza, J.)

NEGATIVE TREATMENT 0 History 3; Citing 1 · Persuasive (D. Ariz.) · Pins *16–17, *27 · First session blocked; opened in session 4

HOLDING

Cross-motions for summary judgment, each granted in part and denied in part (Title VII hostile work environment, sex discrimination, retaliation; defamation counterclaims). The plaintiff was a waitress; her start time moved from 2:00 to 3:00 p.m. after a March 28, 2023 harassment report (about one hour of pay lost per shift); on April 7, 2023 she asked for the hour back "because she couldn't afford the pay cut." No dollar figures. At *16–17 (discrimination): "Because Kahle never amended her complaint to expand the scope of Count Two to encompass the distinct adverse actions of reduced hours or termination, she may not pursue such claims for the first time in a response to a motion for summary judgment" (citing *Navajo Nation*, 535 F.3d at 1079–80; Rule 16(b)(4)). At *27 (retaliation): the defendant did not dispute adverse action; "unnecessary to decide … whether Kahle may premise her Title VII retaliation claim … also based on experiencing a reduction in hours." The plaintiff argued "[e]ven a small reduction in hours (and corresponding reduction in pay)" is adverse (not decided). A first-pass snippet about a small hours reduction was not a verified holding.

HELPS / HURTS / CAUTION

Neutral to slightly negative. Pleading lesson: plead the hours reduction expressly as a distinct adverse action in each count.

Other reduced-hours decisions

Catalog 03, first pass and session 4.

FRANKLIN V. CARROWS RESTAURANTS, 2003 WL 22853698 (2D DIST., DIV. 6, DEC. 3, 2003)

UNPUBLISHED (CRC 8.1115); RED; 1 NEGATIVE. Summary judgment on FEHA retaliation affirmed. A server's hours, about 30–35 per week, were cut to about 25 for two weeks (August 2000), along with all but two of 25–27 employees; the plaintiff acknowledged a company practice when new district leaders arrived. At *3: "Even if a reduction of 20 hours over a two-week period could be considered a substantial adverse change," the plaintiff was not singled out and there was no causal link. Proof was by deposition. **Hurts where a cut is brief and shared.** Not citable in California courts.

GOLDSBY V. SAFEWAY, 2018 WL 297583 (D. OR. JAN. 4, 2018)

FLAG NOT SHOWN. Summary judgment denied on discrimination and hostile work environment, granted in part on retaliation, denied on FMLA/OFLA. After medical leave the plaintiff returned to a night crew with fewer hours than produce; the reason and an offset by other employment were disputed; fewer hours persisted. Fact dispute whether transfer and reduced hours were a tangible employment action. Title VII and state retaliation granted for the employer — the decisionmaker lacked knowledge of the complaints. FMLA/OFLA survived (different job, reduced hours, timing). Evidence: declarations, schedules, other employment, attendance records. No wage calculation. Helps (a reduced schedule can be significant); hurts (decisionmaker knowledge required).

BALLINGER V. CDCR, 2020 WL 1501870 (2D DIST., DIV. 3, MAR. 30, 2020)

UNPUBLISHED; RED. Demurrer dismissal without leave affirmed. A parole agent alleged a supervisor cut hours, scrutinized, and monitored; there were no before-and-after hours, duration, or comparator allegations; conclusory; no causal facts tying the cut to a religious-accommodation request. *6–8 (citing *Yanowitz*; *Thomas*): objective, case-specific inquiry. Pleading lesson: plead exact before-and-after hours, duration, comparators' hours, and causal facts. Not citable in California courts.

BLACK V. BOARD OF TRUSTEES, 46 CAL.APP.4TH 493, 54 CAL.RPTR.2D 140 (2D DIST., DIV. 1, JUNE 17, 1996)

FLAG NOT SHOWN. Denial of mandamus for restoration of hours and back wages affirmed. Nine adult-education teachers were cut 5.7%–17.6% during a budget crisis (30→28; 40→35; 35→33; 34→28); still full-time, no benefit loss. At 500: "A partial, minor reduction in hours is not a termination of employment." No property interest in prior hours. Education Code and due process, not FEHA. Limited relevance; a defense may analogize — distinguish by magnitude (the catalogs describe the Matter 44 cut as about 60%, from about 40 to 16). The session 4 follow-up listed this case as a hit and did not re-open it.

SMITH V. CITY OF OAKLAND, 538 F.SUPP.2D 1217 (N.D. CAL. MAR. 17, 2008) (CHEN, M.J.)

FLAG AND COUNT NOT SHOWN. Section 1983, not employment. Post-verdict: new trial on lost wages unless remittitur from $8,000 to $1,800. The plaintiff had part-time work at Pep Boys, about 8–10 hours per week at $10 per hour (cut from more hours in late summer 2004 due to a slow-down); 4½ months incarcerated. Approved: $10 × 10 hours × 4 weeks × 4.5 months = $1,800. At *1243–44: the court rejected a 40-hour baseline argument that he "would more likely than not have returned to full time employment when work picked up"; at *1244, "any finding that Mr. Smith would have worked full time during the period of his incarceration was speculative" — no evidence work "did pick up or likely would have picked up." **Hurts an unsupported full-time baseline;** supports an actual-recent-hours baseline, which in this matter means proving the pre-cut approximately 40-hour weeks with rosters.

CLEMENTE V. UNITED STATES, 766 F.2D 1358 (9TH CIR. JULY 24, 1985)

NEGATIVE 0 Citing 544. Title VII retaliation bench trial; damages judgment reversed, contempt order vacated. Back pay is governed by "make whole" (*Franks v. Bowman*, 424 U.S. 747, 774). Expert projection is permitted, but "any correspondence between the expert's calculations and the actual salary loss … will depend upon the accuracy of this assumption, an assumption which defendants are entitled to attempt to refute." Damages are limited to those caused by the retaliation. Mixed — supports make-whole modeling; the baseline assumption is attackable.

DALEY V. WALMART STORES, INC., 2018 WL 3104630 (C.D. CAL. JUNE 21, 2018)

NEGATIVE 0 Citing 19. Remand granted (amount in controversy not met). Permanent part-time greeter. At *4: the plaintiff's high estimate was 20 hours per two weeks × $13.20 × 27 weeks = $6,864; the defendant's was 17 hours per week × $13.20 = $5,834.40; the agreed floor was $5,834.40. Lost wages were measured as of removal; no projection

to a speculative trial date. Use: amount-in-controversy illustration only (Record 2); shows courts may refuse to project to trial.

REYES V. STAPLES OFFICE SUPERSTORE, LLC, 2019 WL 4187847 (C.D. CAL. SEPT. 3, 2019)

NEGATIVE 1 (NOT OPENED). Removal. Part-time 20 hours per week × $12.35. Staples approximately $70,000 (79 weeks to removal + 55 to trial + 3 years front pay); the plaintiff $11,609 (47 weeks) because of a store closure and layoff. Figures are from extracted passages, not a full read. Use: employer cutoff argument (layoff or closure); amount-in-controversy contrast.

ORNELAS V. COSTCO WAREHOUSE CORP., 2014 WL 3406435 (C.D. CAL. JULY 9, 2014)

NEGATIVE 0 Citing 6. Remand. Part-time about 30 hours per week × $15; the defendant extrapolated $35,550 to an assumed trial date; the court declined the projection. Extracted passages. Use: amount in controversy — courts may reject projection to a hypothetical trial date.

DEFENSE THEMES AND STILL-OPEN PROOF QUESTIONS

Defense themes recorded in the catalogs: shared or temporary cuts (*Franklin*); neutral pre-announced limits and audits (*Menchu*); a decisionmaker who lacked knowledge (*Goldsby*); minor reductions (*Black*, not FEHA); conclusory pleading (*Ballinger*); failure to plead the cut in the operative complaint (*Kahle*); a speculative full-time baseline (*Smith*). Still open: missing records and the *Mt. Clemens* burden shift; a hospitality reduced-hours verdict comparator (an 817-hit JVS query was not reviewed); no case that was read computed lost wages from schedules. Actual paid hours, unpaid breaks, mitigation, and the correct rate mix are not in the seven PDFs of the fact brief (no pay stub, Oasis statement, or punch detail).

3.4 Section 290.46 remedies and Jury Verdicts & Settlements

Plain-English answer. The civil remedy is in § 290.46(j)(4)(A), quoted in Section 3.1. It supplies actual damages, an additional amount not exceeding three times actual damage and not less than $250, attorney's fees, and "exemplary damages, or a civil penalty not exceeding twenty-five thousand dollars ($25,000)." Subdivision (j)(4)(B) adds preventive relief, including an injunction, for a pattern or practice, independent of other remedies. **Still no reported case that awards § 290.46 damages** was found. Remedy language was quoted only in the statute, in *Mendoza* (then at subdivision (l)), in a *McCallum* snippet (not opened; former (l)(4)(A)), and in *Donaleski* (remedies sought, not reached). *Walker*, *Adamski*, and *McCallum*: no civil-remedy damages award found. A $25,000 ceiling is not an automatic award (Volume 07). Whether "not exceeding $25,000" limits exemplary damages or only the civil penalty remains open (Question 10). Pattern-or-practice relief under (j)(4)(B) requires its own factual basis.

Jury Verdicts & Settlements (catalog 04):

- Megan's Law / registry employment query: 7 JVS entries, all Out of Plan. Visible captions include *EEOC v. ABM Janitorial* (E.D. Cal. 2010; Title VII harassment, a registered-sex-offender coworker; award not visible), *M.K. v. Worsnop* (Nev. 2011), and assault or institutional cases (*Doe v. Unnamed Nursing Home*, *Crain v. Pacific Cabulance*, *Schwartz v. Oakdale Heights*, *J.A. v. Little League*). None is a comparable employment-damages case. Award-range filters ($0: 1; $500k–1M: 1; $1–2M: 1; $5M+: 4) could not be matched to individual cases.
- "290.46" JVS: 0 results.
- FEHA reduced hours / hotel: 817 hits, too broad; not reviewed. **Still missing: a hospitality reduced-hours verdict comparator.**

- *Sharp v. Jules* — no matching case found; not verified; do not cite. Catalog 01 had noted that briefs mentioned trebling to $1.5 million with disposition unverified; catalog 04's later search found no matching case and instructs not to cite it.

4. Record 2 — Defensible damages

Volume 01 and Volume 07, as the fact brief records them, require that emotional distress, statutory remedies, and amount in controversy be kept on separate tracks; that remedies not be stacked; and that Title VII caps and speculative settlement numbers not be imported. Comparable awards support a valuation only when the facts and available remedies line up. The damages-comparator table itself is in Section 6; this section states the findings in prose.

4.1 $752 versus $768 per week

These two figures are the packet's own weekly baselines, not Westlaw holdings, and not proven weekly earnings. The fact brief's calculation check, from the stated hours and rates, is:

- Written-offer mix, 16 Night Audit hours at $24 and 16 Guest Service Agent hours at $23, before unpaid breaks: (16 × 24) + (16 × 23) = 384 + 368 = **$752 per week gross**.
- Recalled single rate, 32 hours at $24, before unpaid breaks: 32 × 24 = **$768 per week gross**.

Volume 07, priority 4, directs: "compare 16 hours at $24 plus 16 at $23 ($752 gross) against 32 hours at $24 ($768) before unpaid breaks, then calculate paid hours actually lost due to the decision, over a supported period, with legally applicable mitigation. Scheduled declines alone do not establish that all shifts would otherwise have continued." Volume 02 uses the same two figures and warns that they "require corroboration." The written offer is part-time, at-will, and silent on hours. No roster week is 2 Night Audit + 2 front desk. Whether the higher early training weeks were temporary is an open question. There is no pay stub, Oasis earnings statement, or punch detail in the seven PDFs; incremental lost wages therefore cannot be reduced to a defended number from that stack alone.

The fact brief sets out an illustrative scheduled-span shortfall that it does **not** adopt as actual damages: if one treated a claimed 32-hour week as the comparator beginning October 25 (the first week whose assigned overnight count equals 32 span hours), later assignment shortfalls would be 8 hours under 32 for November 1–7 ($188 or $192 at the two baselines, 8/32 of $752 or $768) and 16 hours under 32 for November 8–14 ($376 or $384) — before unpaid breaks, causation, or mitigation, and only if the 32-hour mix would otherwise have continued, "which the packet says is not established."

What the Westlaw research adds is how courts treat baselines. Courts use actual recent hours (*Smith*; *Daley*; *Ornelas*). A full-time assumption without evidence is speculative (*Smith* at *1244). The catalogs therefore say the Matter 44 baseline should be pegged to the documented pre-cut weeks (39.5 and 40), with the gap cumulative from week 3 onward, rather than to an assumed 32-hour week that no roster week as a 2+2 mix actually shows, and rather than to a recalled single $24 rate that conflicts with the written $23 Guest Service Agent rate until payroll is obtained. Make-whole expert modeling is allowed, but the assumption is contestable (*Clemente*). Courts measuring amount in controversy have refused to project part-time wages out to a hypothetical trial date (*Daley*, *Ornelas*) and have credited an employer's layoff-or-closure cutoff (*Reyes*, extracted passages). Lost wages must flow from the adverse action actually found (*Birden*: $190,033.92 past and $86,112 future lost wages struck as inconsistent with a lawful-termination finding).

4.2 Emotional distress while still employed

Plain-English answer. No clean comparator was found in which the plaintiff clearly stayed employed. *Pierce v. East Bay MUD* is the closest. California and California-federal courts uphold emotional-distress awards on the plaintiff's own testimony (*Newton*: objective medical evidence not required). Large awards that survived review ordinarily had corroboration (*Colucci*, a psychologist; *McCray*, a psychology expert and the plaintiff's wife). The catalogs' takeaway: keep expected recovery modest and corroborate with coworkers or family. Emotional-distress proof in the Matter 44 stack is the plaintiff's firsthand account of humiliation and distress during training; there are no medical records, and Volume 01 forbids inventing them. Duration after the October 29 remark, and distress specifically attributable to alleged unlawful use rather than to training tone or to the hour reduction generally, are not separately documented. The draft prayer limits distress "to the extent attributable to the unlawful use." The emotional-distress search returned 408 cases; the four comparators below are the ones that were fully cataloged. Full table: Section 6.

Pierce, 2026 WL 2445810, *1, *3–4 (9th Cir. Aug. 20, 2026) (mem.): FEHA, Title VII, and § 1983 retaliation; the plaintiff's own trial testimony about distress, with no detailed duration or corroboration in the opinion; the jury found no constructive discharge; $2 million non-economic plus $1.35 million economic; denial of a new trial and remittitur affirmed (*4); 0 negative treatments. Closest non-termination case. Nonprecedential (9th Cir. R. 36-3); the opinion does not say she was still employed at verdict.

Newton v. Equilon, 411 F.Supp.3d 856, 877 (N.D. Cal. 2019): FEHA harassment and failure to prevent; the plaintiff's testimony (threatened, worried, upset) plus coworkers; objective medical evidence not required; $475,000 past and future emotional distress; renewed JMOL, new trial, and remittitur all denied; 0 negative. Lay testimony is enough. Unusually inflammatory facts; employment status unclear.

Colucci v. T-Mobile, 48 Cal.App.5th 442, 450–62 (2020): FEHA retaliation; a psychologist plus the plaintiff (depression, weight gain, stomach problems, rashes; still affected at trial, *461); $500,000 past plus $200,000 future emotional distress; emotional-distress awards affirmed; punitives cut from $4 million to $1,530,063 (*460–62); yellow flag, 5 negative treatments, no negative direct history. Shows how future emotional distress is proved. The plaintiff was terminated; expert testimony.

McCray v. Westrock, 2024 WL 4579108, *8–9 (C.D. Cal. Sept. 10, 2024): FEHA disability and retaliation; the plaintiff, a psychology expert, and his wife (depression, sleep loss, loss of identity); $1.5 million past plus $1 million future emotional distress left intact on Rule 59; front pay cut from about $1.576 million to $788,150.50; 0 negative. Corroborated proof. Termination case; disability-related harm.

Additional damages data points from other catalogs, not emotional-distress-while-employed comparators: *Birden*, $1.3 million noneconomic affirmed on a harassment finding (unpublished; lost wages struck); *Harper*, $6.2 million FEHA race-discrimination verdict affirmed (unpublished); *Whithorn*, $4.1 million affirmed (unpublished).

4.3 Section 290.46(j)(4)(A) and the $25,000 figure

The verbatim text is in Section 3.1. Catalog 04's takeaway: the subdivision "gives a statutory floor of $250 minimum, up to 3x actual damages, fees, and exemplary damages or a civil penalty up to $25k. This supports the amount in controversy but has no case precedent." Volume 07: "A $25,000 penalty ceiling is not an automatic award." Volume 01: "Evaluate statutory remedies without stacking or importing Title VII caps or a speculative

settlement number." The draft prayer tracks (j)(4)(A): actual damages (lost wages and any proven compensable emotional distress attributable to the statutory violation); "the additional amount authorized by § 290.46(j)(4)(A), including its statutory minimum and limit as applicable"; "Exemplary damages or a civil penalty not exceeding $25,000, as authorized by § 290.46(j)(4)(A) and supported by the required findings"; costs and interest.

Still open, and flagged in Section 9: whether "not exceeding twenty-five thousand dollars ($25,000)" limits exemplary damages, or only the civil penalty, as verified on current Westlaw statute text and Notes of Decisions (Question 10). The statutory wording, as quoted, places "exemplary damages, or a civil penalty not exceeding twenty-five thousand dollars ($25,000)" after attorney's fees; the catalogs do not record a judicial construction of that clause. *Mendoza* at 1655 described then-subdivision (l) as "expressly prescrib[ing] civil remedies—including actual and exemplary damages, and a civil penalty," without an award and without resolving the cap's scope.

4.4 Federal amount in controversy, kept separate from expected recovery

The fact brief and Volume 07 are explicit: do not use brand size or foreign-incorporation assumptions, and do not treat a settlement demand or a statutory ceiling as the amount in controversy. Section 290.46 is state law; citing *Staub* or the Ninth Circuit does not create a federal claim. Diversity or alienage requires citizenship facts, which are not in the packet and cannot be inferred from domicile or California registration, and a supported amount "in excess of $75,000 exclusive of interest and costs," or an actual federal claim (FCRA is described as a potential federal route only if the facts establish covered procurement or use of a consumer report from a CRA, a statutory breach, and concrete injury — those facts "are not in this packet"). Venue in San Jose is supported by events in Santa Clara (28 U.S.C. § 1391(b)(2) and Civil L.R. 3-2(c), (e)), which is a different question from subject-matter jurisdiction.

What the Westlaw research adds, kept on this separate track:

- The statutory package in (j)(4)(A) — actual damages, up to 3×, a $250 floor, fees, and exemplary damages or a civil penalty up to $25,000 — can be argued in support of amount in controversy, but there is no case that awards those sums, and the $25,000 figure is a ceiling, not an automatic amount.
- *Donaleski* itself sought a civil penalty plus damages "in excess of $75,000"; that request was not reached and is not a holding that the amount was met.
- *Daley*, *Ornelas*, and *Reyes* show that, on removal, courts may refuse to project part-time wages to a speculative trial date and may credit an employer cutoff (store closure, layoff). Those cases are amount-in-controversy illustrations, not damages awards.
- ICRAA's $10,000, if it applies, is capped per report per defendant under *Garcia v. Quest*, not stacked per violation, and *Parsonage*'s no-concrete-injury holding does not satisfy Article III or create a federal question.
- FCRA statutory and punitive damages depend on willfulness; *Bultemeyer* and the *Safeco* defense, and the employer's willfulness win in *Nguyen-Wilhite*, are reasons not to treat a large statutory-damages figure as a sure amount.
- Emotional-distress comparators in Section 6 are large and mostly termination cases, often with expert corroboration; they should not be added into an amount-in-controversy figure as if they were the expected recovery on this record.

5. FCRA research guide, Questions 1–10

The guide's priority was (1) Article III standing for § 1681b(b)(2)(A) after *TransUnion* (June 25, 2021) when the employer never gave any disclosure, and (2) ICRAA in federal court. Jurisdiction order: Ninth Circuit and N.D. Cal., then C.D./E.D./S.D. Cal., then California state for ICRAA and § 290.46. Session A was Q1, Q2, Q3, Q5 and KeyCite of known cases; Session B was Q4, Q6, Q7; Session C was Q8, Q9, Q10. Question 10 was not reached. Exact `adv:` strings and result counts are in the Appendix; this section answers each question and then lists the authorities that were read.

Q1. Article III standing after *TransUnion* (complaint ¶ 13; Counts 1 and 3)

Plain-English answer. *TransUnion* — "No concrete harm, no standing" (417) — is still good law (yellow flag; 175 negative treatments). Intangible harms include "reputational harms, disclosure of private information, and intrusion upon seclusion" (425). "An injury in law is not an injury in fact" (427). Plaintiffs who "did not allege that they failed to receive any required information" and "argued only that they received it in the wrong format" failed: "an informational injury that causes no adverse effects cannot satisfy Article III" (440–42). That distinction favors a plaintiff who never received the disclosure at all, if it is paired with intrusion-upon-seclusion and pleaded personal facts — and, after *Gray* and *Nunley*, with a downstream concrete harm such as lost wages and a lost chance to dispute.

The Ninth Circuit has not narrowed *Syed*'s standing holding after *TransUnion*. *Tailford*, 26 F.4th 1092 (Mar. 1, 2022), reaffirmed it. *Bultemeyer* (Sept. 2026) does not limit *Syed*'s stand-alone holding. What has narrowed the path in the California district courts is the demand for **personal** confusion or a decision not to sign, and for a concrete harm independent of the procedural violation. *Olea*, *Michaeli*, *Winters*, *Masuda*, *Nunley*, and *Beltran* all went against plaintiffs who pleaded a form defect, or even a total lack of certain disclosures, without those personal and downstream facts. Pins were not captured for the unreported Q1 cases.

TransUnion LLC v. Ramirez, 594 U.S. 413 (2021)

YELLOW 175 negative treatments · Still good law · Binding · Pins recorded: 417, 425, 427, 440–42 (the guide also asked for 425–31; those additional pages were not separately quoted)

QUOTATIONS RECORDED

417: "No concrete harm, no standing." 425: intangible harms include "reputational harms, disclosure of private information, and intrusion upon seclusion." 427: "an injury in law is not an injury in fact." 440–42: the plaintiffs "did not allege that they failed to receive any required information. They argued only that they received it in the wrong format." An "informational injury that causes no adverse effects cannot satisfy Article III."

Syed v. M-I, LLC, 853 F.3d 492 (9th Cir. 2017)

YELLOW 31 negative treatments · 1,056 citing references (308 cases) · Binding (Ninth Circuit) · Pins 496, 499–500, 500, 502 (in *Wynn*), 504 and 504 n.6 (willfulness / *Bultemeyer*). One document in Session A was wasted on the 2016 E.D. Cal. *Syed* order (the wrong document).

STANDING AND DISCLOSURE

At 499–500: Syed "was confused by the inclusion of the liability waiver with the disclosure and would not have signed it had it contained a sufficiently clear disclosure." At 500: the statute "unambiguously requires a document that 'consists solely of the disclosure.'" At 496: including extra terms is willful. The Ninth Circuit has not narrowed the standing holding after *TransUnion*. *Tailford*, 26 F.4th 1092 (Mar. 1, 2022): "Just as the alleged violation in *Syed* was sufficient to confer standing, the alleged violations of § 1681g here are similarly sufficient." Not opened in Session A: *Bultemeyer* (later opened in Session A-2), *Keefer* (2024 mem.), *Wynn v. UPS* (2024 mem., later opened), and page 2 of the citing references.

WILLFULNESS (ALSO Q5)

At 504: an objectively unreasonable reading is not "by definition" reckless, but violating an unambiguous requirement can be reckless. *Grijalva* cites 504 for the proposition that an interpretation contradicting plain statutory text is objectively unreasonable even if the case is one of first impression.

California district-court standing decisions after TransUnion (Q1 reads)

All persuasive. Pins were not captured for the unreported cases. Template fields as catalog 05 recorded them.

OLEA V. TEICHERT PIPELINES, 2023 WL 6237985 (N.D. CAL. SEPT. 25, 2023)

0 negative. Remanded at summary judgment for no standing; his deposition showed he was not confused. "Unlike the plaintiff in *Syed*, Olea was not deprived of his ability to meaningfully authorize the credit check." Distinguishable, and a risk if the client understood the form.

MICHAELI V. KENTFIELD REHABILITATION HOSPITAL, 2021 WL 2817162 (N.D. CAL. JULY 7, 2021)

0 negative; 7 citing. Remanded; confusion was pleaded only for consumers generally. "Confusion for consumers generally but not confusion on the part of Mr. Michaeli specifically." Hurts unless personal facts are pleaded.

WINTERS V. DOUGLAS EMMETT, 547 F.SUPP.3D 901, 906 (C.D. CAL. JULY 2, 2021)

KEYCITE NOT CAPTURED. Remanded; the employee was not confused and would have signed. Standing "requires the reasonable inference that the violation caused actual confusion." Plead "I would not have signed."

NUNLEY V. CARDINAL LOGISTICS, 2022 WL 5176867 (C.D. CAL. OCT. 5, 2022)

0 negative; 12 citing. Remanded; rejected the argument that a "total lack of certain disclosures" is enough by itself. "The Complaint fails to demonstrate Plaintiff sustained a 'concrete harm' independent of asserted procedural violations." **Hurts on the no-disclosure theory.**

BELTRAN V. WASTE MANAGEMENT, 2025 WL 1455680 (E.D. CAL. MAY 21, 2025)

0 negative. Judgment on the pleadings after earlier leave to amend; the form had a receipt acknowledgment. "A bare procedural violation of Section 1681b(b)(2)(A)'s requirements that a disclosure be standalone, clear and conspicuous is not enough to establish standing." **Hurts (close facts).**

MASUDA V. LUCILE PACKARD, 2021 WL 4305979 (N.D. CAL. SEPT. 22, 2021)

1 negative treatment. Remanded. "There is no fair inference to be made that Plaintiff was confused." Hurts or distinguishable.

Session A also recorded, as snippet leads only and not verified: *Gray v. Nachurs Alpine* (N.D. Ohio Apr. 19, 2023), then described as a case where a privacy harm "may be sufficient" — that snippet characterization was superseded by the full read in Session A-2, which found *Gray* significantly adverse (see Q2). *Admore v. Hospice of Palm Beach* (S.D. Fla. Dec. 13, 2021), standing under (b)(2)(A)(i) — later opened in Session B (see leftovers under Q7). Not opened: *Railey v. PenFed* (C.D. Cal. 2023–24), *Amato v. Tekberry* (N.D. Cal. 2025, untimely removal).

Other Q1 KeyCite checks from Session A

Catalog 05. Several checklist items were unfinished at the document limit and were completed in later sessions.

SPOKEO V. ROBINS, 578 U.S. 330 (2016)

YELLOW 116 negative treatments. Flag only, as the guide requested.

BASSETT V. ABM PARKING SERVICES, 883 F.3D 776 (9TH CIR. 2018)

YELLOW 7 negative treatments; 394 citing. No concrete injury from a receipt showing the expiration date. Later application not reviewed.

WALKER V. FRED MEYER, 953 F.3D 1082, 1084 (9TH CIR. 2020)

YELLOW. The pre-adverse-action notice must describe the right to dispute with the consumer reporting agency; no right to discuss with the employer. No holding found on whether an actual adverse action is required. **The guide's characterization is unverified** (catalog 05, carried forward; still unverified at the end of Session C).

Q2. Disclosure never given (¶¶ 9–10, 28)

Plain-English answer. Most hits on the "never / fail / omit" search are defective-form cases, not true no-disclosure cases (151 cases / 539 total documents on search 1; 6 cases / 17 total on the acknowledgment search). The only fully read opinion that is a true "I never got the disclosure" case is *Gray*, and it is significantly adverse: the plaintiff said he never got the disclosure his authorization acknowledged, and the court still found no standing because the report was accurate and he had signed the authorization. To get around *Gray*, plead lost hours, what the plaintiff would have disputed or explained, any inaccuracy or unlawful-to-use information, and that he never consented or was confused. *Magallon* later distinguishes *Gray* on the ground that Gray alleged no downstream harm other than inability to "explain the inconsistencies." *Fosbrink* found standing where the employee was overwhelmed and confused, might not have signed, and never got the pre-adverse notice, a copy of the report, or a summary of rights before termination (synopsis and headnotes only; no pins). *Wynn v. UPS* (9th Cir. 2024 mem.) hurts an acknowledgment theory but has little bearing on true no-disclosure facts. *Nunley* (Q1) also hurts a "total lack of disclosures is enough" theory. *Admore* (S.D. Fla. 2021), opened in Session B, found standing under (b)(2)(A)(i) for disclosure of non-public information without a required notice; a related Eleventh Circuit citation was not read and should be checked before citing.

Gray v. Nachurs Alpine Solutions, LLC, 2023 WL 3004433 (N.D. Ohio Apr. 19, 2023)

YELLOW 1 negative treatment: distinguished by *Magallon v. Robert Half International*, 2024 WL 4182846 (D. Or. Sept. 13, 2024) · Persuasive (N.D. Ohio; Sixth Circuit standing law) · Pins *4 (as cited in *Magallon*), *5, *7

HOLDING AND QUOTATIONS

Dismissed (b)(3), (b)(2), and § 1681d without prejudice for no standing (*TransUnion*; *Ward* (6th Cir.)). The plaintiff said he never got the separate disclosure his authorization acknowledged; the offer was withdrawn over an accurate DUI. "[T]he § 1681b(b)(3) violation is divorced from concrete injury." (*5). "Even if Gray had received the disclosure prior to NAS withdrawing its offer, it would not negate the fact that the background check showed accurate information." (*5). A signer "cannot maintain that he suffered a concrete privacy injury" (*Groshek*, at *7). NAS "should not take this ruling as approval of its conduct."

HELPS / HURTS / CAUTION

Significant adverse. Distinguish with inaccurate or unlawful-to-use registry information; that the plaintiff would have disputed or explained; that he never consented or was confused; and lost hours (monetary harm). *Magallon* distinguishes *Gray* as a no-downstream-harm pleading. Sixth Circuit law; persuasive only in the Ninth Circuit.

Q2 cases on the acknowledgment / certification search, and Fosbrink

Search 2 hits: *Wynn v. UPS*; *Case v. Hertz*; *Fosbrink*; *Bebault v. DMG Mori*; *Frazier v. First Advantage*; *Syed v. M-I*.

WYNN V. UPS, 2024 WL 1191143 (9TH CIR. MAR. 20, 2024) (MEM., NO. 23-15448), UNPUBLISHED

FLAG NOT CAPTURED. An online disclosure satisfied the stand-alone requirement; an authorization page acknowledged a disclosure "received separately." "The FCRA's requirements on this matter are relatively slim." (*2). "[A]uthorization may be made on the [disclosure] document." (*2). Cites *Syed*, 853 F.3d at 502 (*3). **Hurts on an acknowledgment theory;** little bearing on no-disclosure facts. Memorandum disposition: citable if 2007 or later, not precedent (9th Cir. R. 36-3).

CASE V. HERTZ CORP., 2016 WL 1169197 (N.D. CAL. FEB. 26, 2016) (FREEMAN, J.), NO. 15-CV-02707-BLF

No flag; 0 negative; 37 citing. A Sterling form was not stand-alone (five-day dispute window, nondiscrimination statement, state text); motion to dismiss denied; willfulness pleaded under *Safeco*. Quotes at *5 (text not further extracted in the catalog). Helps on stand-alone and willfulness. Pre-*Spokeo* / pre-*TransUnion* on standing.

FOSBRINK V. AREA WIDE PROTECTIVE, 325 F.R.D. 474 (M.D. FLA. MAY 8, 2018) (CLASS CERTIFICATION)

No flag; 0 negative; 32 citing. Standing found: overwhelmed and confused by the form, might not have signed, never got a pre-adverse notice, a report copy, or a summary of rights before termination. The (b)(2)(A) class was certified; the (b)(3) class was not ascertainable. From synopsis and headnotes only; no pins. Helps.

BEBAULT V. DMG MORI USA, 2020 WL 2065646 (N.D. CAL. APR. 29, 2020) (DONATO, J.)

FLAG NOT CAPTURED. A national class was certified; one-page form with California and New York state text (*1); standing was not a barrier. Helps (defective-form case, not a true no-disclosure case).

FRAZIER V. FIRST ADVANTAGE, 2019 WL 4601616 (E.D. VA. SEPT. 23, 2019)

No flag; 0 negative. Motion to dismiss granted; claim against a CRA, not an employer; the plaintiffs received a form. Facts only read (*1–*3). Mostly irrelevant.

Search 1 top 15 (mostly not opened; captions only): *Morris v. General Information Services*, 2018 WL 4609943 (E.D. Va.); *Nokchan v. Lyft*, 2016 WL 5815287 (N.D. Cal.) (12(b)(1)); *Marchioli v. Pre-employ.com*, 2017 WL 7049527 (C.D. Cal.) (dismissed, standing); *Moody v. Ascenda USA*, 2016 WL 5900216 (S.D. Fla.) (informational injury — later relied on in *Admore* and *Nguyen-Wilhite*; full text not opened, and catalog 07 lists "Moody v. Ascenda full text" as not reached); *Meza v. Verizon*, 2016 WL 4721475 (E.D. Cal.); *Ruiz v. Shamrock Foods*, 804 F. App'x 657 (9th Cir. 2020) (no concrete injury); *Dahy v. FedEx Ground*, 2018 WL 6930263 (W.D. Pa.); *Robertson v. Allied Solutions*, 2017 WL 4517505 (S.D. Ind.) (a 7th Cir. *Robertson*, 902 F.3d at 697, is later relied on in *Magallon* — whether that is the same case was not verified in the catalogs); *Nunley*; *Reardon v. ClosetMaid*, 2013 WL 6231606 (W.D. Pa.) (waiver); *Warr v. Central Garden & Pet*, 2021 WL 6275013 (N.D. Cal.) (FCRA+ICRAA); *Stone v. U.S. Security Associates*, 2019 WL 12520127 (N.D. Ga.) (remanded); *Limon v. Circle K*, 2020 WL 128639 (E.D. Cal.) (summary judgment — a different *Limon* posture from the 2022 Court of Appeal opinion); *Fosbrink*; *Walker v. REALHome Services*, 2019 WL 1225211 (N.D. Ga.).

Q3 and Q5. Authorization defects (¶ 29) and willfulness (¶ 30)

Plain-English answer, Q3. The Q3 authorization search hit the 10,000-case cap and was unusable. Top captions included *Limon*, *Thomas v. FTS*, *Singleton v. Domino's*, *Legrand*, *Newsome*, *Luna*, *Speer*, and *Bercut*. The cases that were read cut against using a stand-alone theory for ¶ 29, and no case was read on an authorization that relies on a disclosure never given. **¶ 29 is still unsupported.** The guide said: if none, drop ¶ 29.

Plain-English answer, Q5. Never giving the disclosure at all violates plain text, so the *Grijalva* / *Syed* framework supports a willfulness theory. *Safeco* still supplies the reckless standard, and *Bultemeyer* shows that a not-objectively-unreasonable reading will defeat a large statutory and punitive verdict. No case was found on reliance on a vendor or a SHRM template (the packet policy page is described in the guide as a SHRM template). *Nguyen-Wilhite* (Q4) granted the employer summary judgment on willfulness and negligence under *Safeco*.

Luna v. Hansen & Adkins Auto Transport, 956 F.3d 1151, 1153–54 (9th Cir. 2020)

YELLOW 2 negative treatments · Binding (Ninth Circuit)

HOLDING

A disclosure in its own stand-alone document, even given with other papers, complies; the authorization "lacks the disclosure subsection's standalone document requirement." **Cuts against using a stand-alone theory for ¶ 29.** Existence and holding confirmed, as the guide requested.

Gilberg v. California Check Cashing Stores, 913 F.3d 1169 (9th Cir. 2019)

YELLOW · Binding · Pins 1175–76, 1177

HOLDING

Surplus language violates (1175–76); clear and conspicuous is a question of law (1177). No standing discussion in the passages that were read. The guide asked for standing discussion; that part is not in the cataloged passages.

Safeco Insurance Co. v. Burr, 551 U.S. 47 (2007)

YELLOW 45 negative treatments · Binding · Pins 57, 69 (as the guide requested)

QUOTATIONS

At 57: "willfully" includes reckless. At 69: reckless means "an unjustifiably high risk of harm that is either known or so obvious that it should be known."

Grijalva v. ADP Screening, 151 F.4th 1055, 1060–61 (9th Cir. Aug. 15, 2025)

YELLOW · Binding (Ninth Circuit)

HOLDING

"An interpretation of the FCRA that contradicts plain statutory text is objectively unreasonable, even if the case is a matter of first impression" (citing *Syed* at 504); where the text is "less than pellucid" a defendant "will nearly always avoid liability"; industry practice was supporting evidence only. Takeaway recorded in catalog 05: never giving the disclosure at all violates plain text, so this framework supports willfulness.

Bultemeyer v. CenturyLink, Inc., 2026 WL 2834418 (9th Cir. Sept. 22, 2026), No. 24-6413

NO FLAG; 0 NEGATIVE 3 citing references · Binding (Ninth Circuit) on the issue it decides

HOLDING

A § 1681b(a)(3)(F) permissible-purpose case, not an employment case. Reversed a $28 million statutory and $112 million punitive verdict: a *Safeco* defense applied because the reading of "initiated" was not objectively unreasonable (Clifton and Bybee concurrences). Cites *Syed* at 504 n.6 (informal opinion letters not authoritative) and at 504 (*Safeco* analogy); does not limit *Syed*'s stand-alone holding. **Hurts only on willfulness damages.** Catalog 07 also records that *Goode v. LexisNexis* was "called into doubt" by *Bultemeyer*.

Q5 search (14 cases): *Jones v. Halstead, Milbourne, Graham, Snell v. G4S, Lewis v. Southwest, Syed, Lengel, Johnson v. New Bern* — listed as hits; those not discussed above were not opened as willfulness authorities in the catalogs.

Q4. Section 1681b(b)(3): shift cut of a current employee as an "adverse action" (Count Two)

Plain-English answer. The best factual fit is *Nguyen-Wilhite v. Tapestry*, 2026 WL 836247 (S.D.N.Y. Mar. 26, 2026): unpaid removal of an already-working hourly employee from the schedule, before the report or notice, could be an adverse action because it "deprived her of her wages for a period of time." That fits a hours cut. The

employer still won on willfulness under *Safeco*. An earlier class-certification opinion in the same case, 2025 WL 504628, treated an internal "on hold" decision alone as not an adverse action and described the plaintiff (already working, sent home off schedule before the letter) as atypical. On standing for a lost opportunity to dispute or explain, *Magallon* and *Seyed-Ali* help; *Williams v. DISA* (discussed under Q6) and *Gray* hurt if the report was accurate and the complaint does not say what the plaintiff would have done. *Goode v. LexisNexis* should be used cautiously (11 negative treatments, including being "called into doubt" by *Bultemeyer*). Whether *Walker v. Fred Meyer* requires an actual adverse action for (b)(3) remains unverified. Whether to drop or keep Count Two is a drafting decision; the research supports keeping it if the hours cut and lost wages are pleaded as the adverse action and as concrete harm.

Nguyen-Wilhite v. Tapestry, 2026 WL 836247 (S.D.N.Y. Mar. 26, 2026) (Rochon, J.)

Related earlier opinion: 2025 WL 504628 (S.D.N.Y. Feb. 14, 2025), 0 negative (class certification denied). The 2026 opinion is recorded as the best fit. Negative-treatment count for the 2026 opinion was not separately stated. Persuasive (S.D.N.Y.). Pin *5 (2026); *7 (2025).

HOLDING (2026)

Unpaid removal of a working hourly employee from the schedule before the report or notice: the court "cannot hold as a matter of law that Tapestry did not take an adverse action"; the removal "deprived her of her wages for a period of time" (*5). The court followed *Moody v. Ascenda*, 2016 WL 4702681 (S.D. Fla. July 1, 2016) (unpaid suspension; full text not opened), and distinguished *Joseph v. Leavitt* (paid leave) and *Burghy v. Dayton Racquet Club* (salaried). But summary judgment for the employer on willfulness and negligence under *Safeco*. **Helps adverse action; hurts willfulness.**

HOLDING (2025, CLASS CERTIFICATION)

0 negative. Class certification denied; an internal "on hold" decision alone was not an adverse action (*7); the plaintiff (already working, sent home off schedule before the letter) was atypical. Mixed.

Magallon v. Robert Half International, 2024 WL 4182846 (D. Or. Sept. 13, 2024)

0 NEGATIVE · Persuasive (D. Or.; in the Ninth Circuit) · Pin *9 (and *9 citing *Gray* at *4)

HOLDING AND QUOTATIONS

Standing on (b)(3): loss of the chance to make timely, informed employment decisions is concrete. Relies on *Robertson* (7th Cir.), 902 F.3d at 697; *Tailford*, 26 F.4th at 1099–1100; *Syed*, 853 F.3d at 499; *Kelly v. RealPage*, 47 F.4th 202, 215 (3d Cir.). Quote (*9): "Article III's strictures are met not only when a plaintiff complains of being deprived of some benefit, but also when a plaintiff complains that she was deprived of a chance to obtain a benefit." Distinguishes *Merck v. Walmart* (6th Cir. 2024), *Davis v. Universal Protection Services* (E.D. Pa. 2021), and *Gray*: no downstream harm alleged; Gray's only injury was inability to "explain the inconsistencies" (*9, citing *Gray* at *4). Rejects *Merck*. **Helps.** This is the opinion that supplies *Gray*'s one negative treatment ("Distinguished by").

Seyed-Ali v. HireRight, 2025 WL 2659234 (C.D. Cal. Aug. 15, 2025)

0 NEGATIVE · Persuasive (C.D. Cal.)

HOLDING

Motion to dismiss denied on standing, (b)(3), ICRAA, and UCL; a lost chance to dispute and keep the job is enough at the pleading stage (*Dutta*, 895 F.3d at 1174). The opinion sets out Civil Code §§ 1786.16(a)(2)(A), (b)(1)–(2), and 1786.40, and cites *Connor*, 5 Cal.5th at 1033. **Helps** (including on ICRAA pleading in federal court, Q6).

Goode v. LexisNexis, 848 F.Supp.2d 532 (E.D. Pa. 2012)

11 negative treatments: disagreed with by *Williams v. First Advantage*, 155 F.Supp.3d 1233 (N.D. Fla. 2015); declined to follow by *Costa v. Family Dollar*, 195 F.Supp.3d 841 (E.D. Va. 2016), and *Muir v. Early Warning*, 2016 WL 4967792 (D.N.J.); "called into doubt" by *Bultemeyer* (9th Cir. 2026). Synopsis only.

CAUTION

Use cautiously. Listed on the "Do not cite" / use-with-caution list in Section 8. The catalogs do not record a verified holding beyond the synopsis and the negative-treatment trail.

Other Q4 search hits, not fully read: *Razilov v. Nationwide*, 242 F.Supp.2d 977 (D. Or. 2003) (6 negative; abrogated by *Reynolds v. Hartford*, 435 F.3d 1081 (9th Cir. 2006) — do not cite, Section 8); *Banks v. Central Refrigerated*, 2017 WL 1683056 (D. Utah); *Lyttle v. Trulieve*, 2021 WL 2379395 (M.D. Fla.); *Frazier v. Vintage Stock*, 2015 WL 6160275 (W.D. Okla.); *Lafollette v. Delta Health Care Management*, 2016 WL 6662717 (N.D. Ga.); *Dukes v. Air Canada*, 2019 WL 8358700 (M.D. Fla.); *Mix v. Asurion/Sterling*, 2016 WL 7229140 (D. Ariz.); *Frazier v. First Advantage*, 2018 WL 4568612 (E.D. Va.); *Milne v. Sears Holdings*, 2016 WL 1660163 (N.D. Cal.) (motion to dismiss denied); *Moore v. Rite Aid*, 33 F.Supp.3d 569 (E.D. Pa.); *Prescott v. HireRight*, 2014 WL 12781292 (C.D. Cal.); *Tate v. Dallas ISD*, 2022 WL 272711 (N.D. Tex.). Standing-search hits: *Burton v. St. Mary's Healthcare*, 2026 WL 2838174 (N.D.N.Y.); *Azeez v. Lifespan*, 635 F.Supp.3d 75 (D.R.I. 2022) (standing, no copy before termination); *Hood v. Action Logistix*, 2021 WL 6196832 and 2022 WL 22890563 (E.D. Mo.) (lost opportunity to explain); *Schumacher v. SC Data Center*, 33 F.4th 504 (8th Cir. 2022) (no injury); *Gault v. Charles Schwab*, 2025 WL 2208287 (D. Ariz.); *Hansberry v. Board of Education*, 670 F.Supp.3d 683 (N.D. Ill. 2023) (no harm, (b)(2)); *Gray*.

Q6. ICRAA, Civil Code § 1786.16, in federal court (Count Three)

Plain-English answer. In California state court, *Parsonage* (review denied April 29, 2026; no depublication) and *Yeh* allow $10,000 in ICRAA statutory damages without a concrete injury. Those holdings do not cure Article III in federal court. In federal court, *Williams v. DISA* (N.D. Cal. June 2026) requires a concrete injury even for a statutory violation, and treats accurate disqualifying information as no concrete harm if the complaint does not plead what the plaintiff would have said or done. *Seyed-Ali* (C.D. Cal. 2025) denied a motion to dismiss on ICRAA at the pleading stage on a lost-chance-to-dispute theory. *Garcia v. Quest* caps the ICRAA penalty at one $10,000 per report per defendant, not per violation. *Kemp* holds that the FCRA does not preempt ICRAA's seven-year conviction limit. *Limon v. Circle K*, 84 Cal.App.5th 671 (Oct. 25, 2022) (yellow; 10 negative), exists and conflicts with *Parsonage*: no concrete privacy injury pleaded; dismissal affirmed. *Connor v. First Student*, 5 Cal.5th 1026 (2018) (no flag; 0 negative), is good law; *Seyed-Ali* cites it at 1033; *Moran* follows it on vagueness. The first guide search under Q6 ("1786.16" /p (disclosure …) /p (employ! employer)) was not separately recorded with a count in the session catalogs; the standing, preemption, and $10,000 searches were run in Session B.

Parsonage v. Wal-Mart Associates, 118 Cal.App.5th 399, 341 Cal.Rptr.3d 447 (4th Dist., Div. 1, Feb. 4, 2026), D083831

NO FLAG; 0 NEGATIVE 1 history entry; 47 citing references · History: review denied April 29, 2026; no depublication · Published and citable. The body of the opinion is listed among Session B items "not reached"; holdings below are from catalogs 05, 06, and 07.

HOLDING

Reversed the employer's summary judgment. ICRAA standing on a statutory violation alone (a CRA was not identified in a stand-alone disclosure; extraneous information), "without any alleged concrete injury." State courts are not bound by Article III. **Strongly helps in state court.** Does not satisfy federal Article III or create a federal question (fact brief, Volume 07; catalog 07).

Yeh v. Barrington Pacific, 117 Cal.App.5th 1303, 341 Cal.Rptr.3d 311 (2d Dist., Div. 3, Jan. 21, 2026)

0 NEGATIVE · Published · Pin *1309

QUOTATION AND HOLDING

"ICRAA permits those who experience a violation of their rights to recover $10,000 without proving concrete injuries." (*1309). ICRAA reversed (for the plaintiff, as the catalog frames it); UCL affirmed for the defendant. Helps on the $10,000-without-concrete-injury point, in state court.

Williams v. DISA Global Solutions, 2026 WL 1847740 (N.D. Cal. June 26, 2026)

0 NEGATIVE · Persuasive (N.D. Cal.) · Pin *2

HOLDING AND QUOTATION

Dismissed with leave (FCRA (b)(3); Civil Code §§ 1786.16(b), 1786.40). Under *Dutta*, accurate disqualifying information is no concrete harm; "I would have disputed" was not pleaded. "Article III standing requires a concrete injury even in the context of a statutory violation." (*2). **Hurts** — plead what the plaintiff would have said or done, and any inaccuracy.

Garcia v. Quest Group, 2022 WL 228971 (S.D. Cal. Jan. 26, 2022)

0 NEGATIVE · Persuasive (S.D. Cal.)

HOLDING

"Under the plain language of the statute, the ICRAA penalty applies per 'investigative consumer report'" — one $10,000 per report per defendant; cites § 1786.50(a) and *Limson v. Bridge Property Management*, 416 F.Supp.3d 972, 983–84 (N.D. Cal. 2019). Remanded (no diversity). **Caps the damages theory at $10,000 per report.**

Kemp v. Superior Court, 86 Cal.App.5th 981, 302 Cal.Rptr.3d 788 (2022)

1 negative treatment · Published. Disposition versus the trial court not read (Session B leftover).

HOLDING

The FCRA does not preempt ICRAA's seven-year conviction limit; no § 1681t(b)(1)(E) trigger. Helps on preemption.

Limon v. Circle K Stores, 84 Cal.App.5th 671 (Oct. 25, 2022)

YELLOW 10 negative treatments · Existence and status confirmed, as the guide requested

HOLDING

No concrete privacy injury pleaded; dismissal affirmed. Conflicts with *Parsonage*. A 2020 E.D. Cal. *Limon* summary-judgment opinion (2020 WL 128639) appeared in the Q2 search list and is a different posture.

Moran v. Screening Pros, 923 F.3d 1208, amended 943 F.3d 1175 (9th Cir. 2019); later district opinion 2020 WL 4724307 (C.D. Cal. July 30, 2020) (Wilson, J.)

Ninth Circuit: 2 negative treatments; rejects vagueness (follows *Connor*); a § 1681t(b) preemption argument was waived (*1213), not decided. Later district opinion: YELLOW, 3 negative (distinguished by *Ahn v. Bank of America* (C.D. Cal. July 25, 2023)). Also discussed under Q8.

2020 DISTRICT HOLDING (Q8 OVERLAP)

Summary judgment for the defendant on FCRA; alternatively no actual damages (*Syed*, 853 F.3d at 505); declined supplemental jurisdiction over ICRAA and UCL and remanded. Quote (*13): "California's ICRAA was only recently declared constitutional by the California Supreme Court, and the Court finds that principles of comity favor permitting those claims to be adjudicated by California state courts." Mixed.

Other Q6 standing-search hits, not fully read: *Soman v. Alameda Health System*, 2023 WL 336632 (N.D. Cal.); *Zuniga v. House Foods*, 2022 WL 22607478 and 22607479 (C.D. Cal.); *Askins v. CRST Expedited*, 120 Cal.App.5th 1190 (June 4, 2026); *Soares v.*

TransUnion, 2026 WL 1910126 (C.D. Cal.); *Sosa v. CTM Apartment Services*, 2026 WL 2168680 (Cal. Ct. App.); *Castillo v. Hoag Memorial Hospital*, 2023 WL 12167633 (C.D. Cal.) (standing conceded lacking). Preemption-search hits not fully read: *In re Uber FCRA Litigation*, 2017 WL 2806698 (N.D. Cal.); *Roe v. LexisNexis*, 2013 WL 12134002, 11246904, 12136577 (C.D. Cal.); *Trujillo v. First American Registry*, 157 Cal.App.4th 628 (2007); *Cunha v. IntelliCheck*, 254 F.Supp.3d 1124 (N.D. Cal. 2017). $10,000-search hits not fully read: *Diaz v. First Advantage*, 2006 WL 8428091 (C.D. Cal.); *Singletary v. G6 Hospitality*, 2022 WL 2193111 (S.D. Cal.) (class settlement — hotel); *Bernuy v. Bridge Property Management*, 89 Cal.App.5th 1174 (2023); *Lewis v. Southwest*, 2018 WL 400775 (N.D. Tex.); *Ellsworth v. Schneider*, 2020 WL 8773059 (C.D. Cal.); *Konoudi v. XO*, 2015 WL 13914811 (C.D. Cal.). The guide's questions about ICRAA/CCRAA overlap or election, and about user (employer) liability under § 1786.50, were not separately answered beyond *Garcia*'s citation to § 1786.50(a) and *Seyed-Ali*'s citation of the disclosure sections.

Q7. Signed acknowledgment of receipt

Plain-English answer. The search (17 cases / 92 total) was mostly noise. **No estoppel-from-acknowledgment case was found.** No case was found in which signing an acknowledgment stopped the employee from suing. *Moore v. UPS*, 2023 WL 4193906 (Cal. Ct. App. 1st Dist. June 27, 2023), is unpublished and not citable in California courts: it involved an acknowledgment and an e-signature box, and summary adjudication for UPS on willfulness. *Wynn* (Q2) and *Beltran* (Q1) are the closer risks on acknowledgment facts, but they are standing or stand-alone holdings, not estoppel holdings. *Admore*, which had been a leftover from Session A, was opened here.

Moore v. UPS, 2023 WL 4193906 (Cal. Ct. App. 1st Dist. June 27, 2023)

FLAG COLOR NOT CAPTURED · **Unpublished (not citable in California courts, CRC 8.1115)** — on the "Do not cite" list

HOLDING

Acknowledgment plus an e-signature box; summary adjudication for UPS on willfulness. No estoppel-from-acknowledgment holding. Do not cite in California courts.

Admore v. Hospice of Palm Beach County, 2021 WL 6926422 (S.D. Fla. Dec. 13, 2021) (Rosenberg, J.)

0 NEGATIVE · Persuasive (S.D. Fla.) · Pin *4 · Related: 2021 WL 6337323; 2022 WL 22883774 (fees to hospice); 2022 WL 4535567. Eleventh Circuit 2024 WL 371948 is listed only as a related reference and was not read — check before citing. Session A-2 had recorded "Admore: NOT FOUND as an FCRA case. Only Admore v. Hospice …, 2024 WL 371948 (11th Cir. Feb. 1, 2024) (FMLA). Do not cite without a full cite." Session B then found and opened the 2021 district FCRA opinion. The 2024 Eleventh Circuit opinion remains unread and was described in Session A-2 as an FMLA case.

HOLDING AND QUOTATION

Standing under (b)(2)(A)(i) though hired; follows *Moody v. Ascenda*, 2016 WL 5900216, at *3, and *TransUnion*, 141 S. Ct. at 2210. Quote (*4): "Ms. Admore has standing. A party suffers a constitutionally-sufficient injury-in-fact where, as here, non-public information is disclosed to a third party based on that third party's failure to provide a statutorily-required notice." Consumer-report status and limitations were jury questions. Helps on a privacy-disclosure standing theory; persuasive only; confirm the appellate history before citing.

Q7 search noise (captions only): *DiSalvo v. Intellicorp*, 2016 WL 5405258 (N.D. Ohio); *Palmer v. LoanCare*; *Williams v. Amazon*, 312 F.R.D. 497; *NCUA v. RBS*; *Williamson v. Trans Union*; *Clark v. JPMorgan*; *Henry v. Examworks*; *Aiken v. Broward County*; *Lucchesi v. Experian*. A second document for this search was not reached.

Q8. Supplemental jurisdiction and tolling (memo § 2.6)

Plain-English answer. *Artis v. District of Columbia*, 583 U.S. 71 (2018) (yellow; 9 negative treatments; 1,584 citing references), holds that 28 U.S.C. § 1367(d) "toll" means to stop the clock while the claim is pending in federal court, plus 30 days after dismissal — not a grace period. It abrogates *City of Los Angeles v. County of Kern*, 59

Cal.4th 618 (2014), which is red-flagged and must not be cited. *Artis* itself was a § 1367(c) decline of supplemental jurisdiction, not an Article III standing dismissal. No passage on Article III standing dismissals specifically was found; that question is open. *Rueb v. Stancil*, 2025 WL 3471931 (D. Colo. Dec. 3, 2025), and a Los Angeles Superior Court order, *Marroquin v. Loya Casualty Insurance Co.*, No. 25STCV15661 (Jan. 20, 2026) (trial-court order; not precedent), treat jurisdictional dismissals as covered. On declining supplemental jurisdiction over ICRAA as a "novel" state-law issue, *Moran* (C.D. Cal. 2020) remanded ICRAA and UCL on comity grounds after the California Supreme Court had "only recently declared [ICRAA] constitutional"; *Kaplan v. Seterus*, 2017 WL 3478801 (N.D. Cal. Aug. 14, 2017) (no flag; 0 negative), remanded a CCRAA claim as a novel state issue under § 1367(c)(1) and is useful by analogy. The Q8-2 search (12 cases) had no visible § 290.46 hits.

Artis v. District of Columbia, 583 U.S. 71, 138 S.Ct. 594 (2018) (Ginsburg, J.; Gorsuch dissent joined by Kennedy, Thomas, and Alito)

YELLOW 9 negative treatments (declined to extend by *Simmons v. Rubio* (D.C. Cir. Mar. 17, 2026)) · 1,584 citing references · Binding · Pins recorded: syllabus *71; *82–83; *86. The guide also asked for citing references on standing dismissals; no squarely on-point Supreme Court or Ninth Circuit case was found.

HOLDING AND QUOTATIONS

§ 1367(d) "toll" means stop the clock while pending in federal court, plus 30 days after dismissal; not a grace period; abrogates *County of Kern*. Posture: a § 1367(c) decline, not an Article III dismissal. Syllabus at *71: "Section 1367(d)'s instruction to 'toll' a state limitations period means to hold it in abeyance, i.e., to stop the clock." At 82–83, *Hardin* is "a feather on the scale"; "It suspends the statute of limitations for two adjacent time periods: while the claim is pending in federal court and for 30 days postdismissal." At 86, the Court rejects ALI "dismissed for lack of jurisdiction over the subject matter" language as an adopted model. Helps on the stop-the-clock rule. The Article III-standing-dismissal question remains open; *Rueb* ("for thirty days following involuntary dismissal of those claims on jurisdictional grounds") and *Marroquin* (30-day safe harbor after a federal dismissal "based on subject matter jurisdiction," plus equitable tolling under *Addison*) treat jurisdictional dismissals as covered.

Other Q8-1 search hits, not fully read: *Lee v. Cooley*, 2010 WL 3894924 (C.D. Cal.) (quotes *Randolph v. Budget Rent-A-Car*, 97 F.3d 319: lack of subject-matter jurisdiction means the court must dismiss all claims); *Government of the Virgin Islands v. United Industries*, 2016 WL 192271 (V.I.) (§ 1367(d) tolls after a jurisdictional dismissal); *Douse v. Holiday Inn*, 2026 WL 2909300 (E.D. Pa. Sept. 28, 2026) (pro se hotel case; state claims dismissed for lack of subject-matter jurisdiction, citing *Merritts v. Richards*, 62 F.4th 764, 772 (3d Cir. 2023)); *Kreckow v. UPS Ground Freight*, 2008 WL 4756481 (W.D. Wis.); *Risich v. Bensalem Township*, 2005 WL 2850382 (E.D. Pa.); *Moss v. Schimp*, 2022 WL 2802307 (S.D. Ill.); *Gibson v. Kent*, 2016 WL 7384646 (N.D. Fla.). Other Q8-2 hits, not fully read: *Miles v. Credit Acceptance*, 2021 WL 12409004 (N.D. Ill.); *Brillinger v. City of Lake Worth*, 2006 WL 8433421 (S.D. Fla.); *Stanberry v. World Way*, 2018 WL 297564 (C.D. Ill.); *Verdejo v. Berkshire Property Advisors*, 2016 WL 11566517 (M.D. Fla.); *Baldi v. Service Finance Co.*, 2025 WL 2701893 (E.D. Cal.); *Colman v. Faucher*, 128 F.Supp.3d 487 (D.R.I.) (Title IX, not FCRA); *Abuan v. City of Fife*, 2012 WL 6012797 (W.D. Wash.); *Burner v. Cenlar*, 2013 WL 12415751 (S.D. Cal.). *Kaplan* quote (*18): "principles of comity weigh in favor of allowing state courts to address this novel issue of state law, and providing a separate and sufficient statutory basis for declining to exercise jurisdiction."

Q9. Penal Code § 290.46 updates since September 2026

Plain-English answer. No post-September 2026 § 290.46 employment decision was found; the newest is *Walker*, October 10, 2025. *Walker* confirms that the employment ban is now at § 290.46(j)(2)(E) and that the employer who uses the information is the proper defendant. *Mendoza* remains the leading "use" case and contains the "person at risk" sentence discussed in Section 3.1. Nothing new was found on a non-decisionmaking coworker or trainer as a "user," or on vicarious liability under a statute that imposes liability on "the user." The CCP § 340(a) one-year-limit question — including whether it would produce a binding filing date of October 13, 2027, as the

guide asked — is **undetermined**. The Q9-4 search returned 20 cases; the Q9-5 search returned 19, mostly PAGA and wage cases, with no § 290.46 case visible. None of those cases was opened (the document limit hit on *McCallum*). Authorities already discussed in Section 3.1 are not repeated at length here.

Q9-4 first 10, not opened: *Doe v. Brown*; *Donaleski*; *Mendoza*; *Doe v. California DOJ*, 173 Cal.App.4th 1095 (2009); *Cross v. Cooper*; *Mitchell v. Brown*, 2015 WL 3993149 (E.D. Cal.); *In re Northwest Automatic Products* (irrelevant); *Mitchell v. Harris*; *McCallum v. Batista*; *Adamski v. Martis*, 2007 WL 2019565 (N.D. Cal.). Q9-5 first captions, not opened: *Garcia v. Lifetime Brands*; *Stevens v. Datascan*; *Cruz v. Wal-Mart*; *Deitelbaum v. Rawlings*; *Ibrahim v. Morgan Southern*; *Hamburger v. Register Tapes*; *Carter v. Golden Gate Freightliner*; *Barajas v. Carriage Services*; *Gjovik v. Apple*, 2024 WL 4369656; *Tuan Vo v. LoanMe*.

Q10. Current statute text and Notes of Decisions — not reached

The document limit was reached in Session C before Question 10. Defense-brief searches were also not reached. What **was** read earlier, and should not be treated as unfinished, is the current annotated text of § 290.46(j)(1)–(4), including the verbatim (j)(4)(A) quotation, effective January 1, 2023 (catalogs 01, 04, and 08). What remains open is listed in Section 9, including: current text and 2024–2026 amendments and Notes of Decisions for the FCRA, ICRAA, § 1367, CCP, and Labor Code sections the guide named; and whether "not exceeding $25,000" limits exemplary damages or only the civil penalty. Exact strings to run next are in Section 9.

6. Damages comparator table

Compiled from catalog 04 (emotional-distress awards that survived review) and from damages figures recorded in other catalogs. Each entry records statute or claim, injury and proof, amount, disposition, and KeyCite, as requested. Amount-in-controversy illustrations (*Daley*, *Reyes*, *Ornelas*) are not damages awards and are listed after the entries. JVS awards were Out of Plan or not reviewed and are not included here. *Sharp v. Jules* is omitted (not found; do not cite).

Pierce v. East Bay MUD, 2026 WL 2445810, *1, *3–4 (9th Cir. Aug. 20, 2026) (mem.)

0 NEGATIVE · Ninth Circuit memorandum (citable if ≥2007, not precedent, 9th Cir. R. 36-3)

STATUTE / CLAIM

FEHA, Title VII, § 1983 retaliation

INJURY AND PROOF

Plaintiff's own trial testimony about distress; no detailed duration or corroboration in the opinion; the jury found no constructive discharge.

AMOUNT

$2 million non-economic + $1.35 million economic

DISPOSITION

Denial of a new trial and remittitur affirmed (*4)

HELPS / LIMITS

Closest non-termination case. Nonprecedential; the opinion does not say she was still employed at verdict.

Newton v. Equilon, 411 F.Supp.3d 856, 877 (N.D. Cal. 2019)

0 NEGATIVE · Persuasive (N.D. Cal.)

STATUTE / CLAIM

FEHA harassment / failure to prevent

INJURY AND PROOF

Plaintiff's testimony (threatened, worried, upset) plus coworkers; objective medical evidence not required.

AMOUNT

$475,000 past + future emotional distress

DISPOSITION

Renewed JMOL, new trial, and remittitur all denied

HELPS / LIMITS

Lay testimony is enough. Unusually inflammatory facts; employment status unclear.

Colucci v. T-Mobile, 48 Cal.App.5th 442, 450–62 (2020)

YELLOW 5 negative treatments; no negative direct history · Published California authority

STATUTE / CLAIM

FEHA retaliation

INJURY AND PROOF

A psychologist plus the plaintiff: depression, weight gain, stomach problems, rashes; still affected at trial (*461).

AMOUNT

$500,000 past + $200,000 future emotional distress

DISPOSITION

Emotional-distress awards affirmed; punitives cut from $4 million to $1,530,063 (*460–62)

HELPS / LIMITS

Shows how future emotional distress is proved. The plaintiff was terminated; expert testimony.

McCray v. Westrock, 2024 WL 4579108, *8–9 (C.D. Cal. Sept. 10, 2024)

0 NEGATIVE · Persuasive (C.D. Cal.)

STATUTE / CLAIM

FEHA disability / retaliation

INJURY AND PROOF

The plaintiff, a psychology expert, and his wife: depression, sleep loss, loss of identity.

AMOUNT

$1.5 million past + $1 million future emotional distress

DISPOSITION

Emotional-distress awards left intact on Rule 59; front pay cut from about $1.576 million to $788,150.50

HELPS / LIMITS

Corroborated proof. Termination case; disability-related harm.

Birden v. Regents, 2021 WL 3560233 (2d Dist., Div. 2, Aug. 12, 2021)

RED; 1 NEGATIVE · Unpublished (Not Reported in Cal.Rptr.; verify citability). Do not cite in California courts without confirming citability.

STATUTE / CLAIM

FEHA (harassment found; termination found lawful)

INJURY AND PROOF

The jury found harassment but not wrongful termination. The computation method for lost wages was not shown.

AMOUNT

$1.3 million noneconomic affirmed as modified; $276,145.92 lost wages struck (from $190,033.92 past + $86,112 future; the appeal reduced $1,576,145.92 to $1.3 million)

DISPOSITION

Judgment modified on appeal

HELPS / LIMITS

Not an employed-plaintiff comparator. Lesson: lost wages must flow from the adverse action found. A cat's-paw instruction was refused and not appealed.

Harper v. Regents, 2026 WL 1379141 (1st Dist., Div. 3, May 15, 2026)

RED; 1 NEGATIVE (NOT OPENED) · Unpublished / noncitable (CRC 8.1115)

STATUTE / CLAIM

FEHA race discrimination

INJURY AND PROOF

Not an emotional-distress-while-employed catalog entry; jury-verdict data point only.

AMOUNT

$6.2 million

DISPOSITION

Affirmed

HELPS / LIMITS

Unpublished / noncitable. A termination (or removal) case, not a reduced-hours case.

Whithorn v. City of West Covina, 2025 WL 1894831 (2d Dist., Div. 8, July 9, 2025)

RED; 1 NEGATIVE · Unpublished / noncitable (CRC 8.1115)

STATUTE / CLAIM

FEHA (fire chief; animus during medical leave)

INJURY AND PROOF

Not an emotional-distress-while-employed catalog entry; jury-verdict data point only.

AMOUNT

$4.1 million

DISPOSITION

Affirmed

HELPS / LIMITS

Unpublished / noncitable. Not a reduced-hours hospitality comparator.

Bultemeyer v. CenturyLink, 2026 WL 2834418 (9th Cir. Sept. 22, 2026)

NO FLAG; 0 NEGATIVE 3 citing references · Binding on the issue it decides, which is not employment

STATUTE / CLAIM

FCRA § 1681b(a)(3)(F) (not employment)

INJURY AND PROOF

Permissible-purpose case; *Safeco* defense.

AMOUNT

$28 million statutory + $112 million punitive — reversed

DISPOSITION

Verdict reversed

HELPS / LIMITS

Not a damages comparator to use affirmatively; hurts willfulness damages.

Amount-in-controversy illustrations only, not awards. *Daley*, 2018 WL 3104630: part-time greeter; plaintiff's high estimate $6,864; defendant's $5,834.40; agreed floor $5,834.40; remand (AIC not met); wages measured as of removal, no projection to trial. *Reyes*, 2019 WL 4187847: part-time 20 hrs/wk × $12.35; employer about $70,000 (79 weeks to removal + 55 to trial + 3 years front pay); plaintiff $11,609 (47 weeks) because of store closure/layoff; figures from extracted passages. *Ornelas*, 2014 WL 3406435: part-time about 30 hrs/wk × $15; defendant extrapolated $35,550 to an assumed trial date; court declined the projection; remand. *Smith v. City of Oakland*, 538 F.Supp.2d 1217: § 1983, not employment; remittitur from $8,000 to $1,800 on an 8–10 hour, $10/hour recent-hours baseline. *Donaleski* sought a civil penalty plus damages "in excess of $75,000"; not reached. *Mendoza* involved a $42,593.75 anti-SLAPP fee award to the screener, not a plaintiff's damages award.

7. KeyCite status table — checklist cases

Every case on the FCRA research guide's KeyCite checklist, plus leading Record 1 authorities that were KeyCited. Where only a negative-treatment count was recorded and not a flag color, the color column says "color not captured." "Still good law" is stated only where a catalog said so.

KEYCITE CHECKLIST AND RELATED AUTHORITIES

CASE	FLAG COLOR	NEGATIVE	CITING REFS	NOTES, AS RECORDED
TransUnion v. Ramirez, 594 U.S. 413 (2021)	YELLOW	175	—	Still good law. Pins 417, 425, 427, 440–42. Guide also asked for 425–31; additional pages not separately quoted.
Spokeo v. Robins, 578 U.S. 330 (2016)	YELLOW	116	—	Flag only, as requested.
Syed v. M-I, 853 F.3d 492 (9th Cir. 2017)	YELLOW	31	1,056 (308 cases)	Standing holding not narrowed after *TransUnion*; reaffirmed in *Tailford*, 26 F.4th 1092. Pins 496, 499–500, 500, 504, 504 n.6, 502.
Gilberg v. California Check Cashing Stores, 913 F.3d 1169 (9th Cir. 2019)	YELLOW	color recorded; count not captured	—	Pins 1175–76, 1177. No standing discussion in passages read.
Walker v. Fred Meyer, 953 F.3d 1082 (9th Cir. 2020)	YELLOW	count not captured	—	Pre-adverse notice must describe right to dispute with the CRA. Guide's characterization of whether (b)(3) requires actual adverse action is unverified.
Luna v. Hansen & Adkins, 956 F.3d 1151 (9th Cir. 2020)	YELLOW	2	—	Existence and holding confirmed. Pins 1153–54.
Bassett v. ABM Parking Services, 883 F.3d 776 (9th Cir. 2018)	YELLOW	7	394	No concrete injury from a receipt showing expiration date. Later application not reviewed.

CASE	FLAG COLOR	NEGATIVE	CITING REFS	NOTES, AS RECORDED
Safeco Insurance Co. v. Burr, 551 U.S. 47 (2007)	YELLOW	45	—	Pins 57, 69.
Connor v. First Student (2018) 5 Cal.5th 1026	NO FLAG	0	—	Good law. Cited in *Seyed-Ali* at 1033; followed in *Moran* on vagueness.
Parsonage v. Wal-Mart Associates (2026) 118 Cal.App.5th 399	NO FLAG	0	47 (1 history entry)	Review denied Apr. 29, 2026; no depublication. Body listed as not fully reached in Session B leftovers.
Limon v. Circle K Stores (2022) 84 Cal.App.5th 671	YELLOW	10	—	Existence and status confirmed. Conflicts with *Parsonage*.
Mendoza v. ADP Screening (2010) 182 Cal.App.4th 1644	NO FLAG	0	692 (161 cases)	Pins 1648–49, 1649–51, 1654–57, 1657–58, 1659; catalog 08 also 1655–56, 1656–57. Still the leading "use" case.
Donaleski v. Wal-Mart, 2009 WL 1296257 (E.D. Cal.)	NO FLAG	0	4	Registry-employment case. Citing references since 2009: 4 recorded.
Artis v. District of Columbia, 583 U.S. 71 (2018)	YELLOW	9	1,584	Most negative: declined to extend by *Simmons v. Rubio* (D.C. Cir. Mar. 17, 2026). No on-point citing case on Article III standing dismissals.
Kanter v. Warner-Lambert, 265 F.3d 853 (9th Cir. 2001)	YELLOW	13	—	Flag and count only. Guide asked for pins 857–58; those pins were not captured or quoted.
Gibson v. Chrysler, 261 F.3d 927 (9th Cir. 2001)	YELLOW	34	—	Flag and count only. Guide asked for pin 945; not captured or quoted.
Staub v. Proctor Hospital, 562 U.S. 411 (2011)	YELLOW	104	7,148 (1,763 cases)	Most negative: *Connecticut Fair Housing Center v. CoreLogic*, 167 F.4th 605 (2d Cir.), declined to extend. Title VII footnote not opened (verify).
Poland v. Chertoff, 494 F.3d 1174 (9th Cir. 2007)	YELLOW	18	2,040 (696 cases)	Most negative: *Larson v. Idaho State University*, 2022 WL 1806302 (D. Idaho), abrogation recognized; also *Porter v. Mabus*, 2014 WL 4436303.
France v. Johnson, 795 F.3d 1170 (9th Cir. 2015)	YELLOW	6	591	Yellow described as "Distinguished by *Mattioda v. Nelson*, 9th Cir., Apr. 22, 2024." Citing-reference KeyCite not run in session 1. Most-negative case not captured in Session A-2 for this and the next three.
Reid v. Google, 50 Cal.4th 512 (2010)	YELLOW	23	—	Most-negative not captured. Volume 07 pins 539–41; 542 as conduit cite. Flag only in Session A-2.
Patterson v. Domino's, 60 Cal.4th 474 (2014)	YELLOW	8	—	Most-negative not captured. Volume 07 pins 497–98 (joint-employer; not to be assumed under § 290.46).
Soo Park v. Thompson, 851 F.3d 910 (9th Cir. 2017)	YELLOW	6	—	Most-negative not captured. Volume 07 pins 928–29.
Light v. Department of Parks & Recreation, 14 Cal.App.5th 75 (2017)	YELLOW	6	1,080	No negative direct history. Six treatments listed in Section 3.3; whether they target the adverse-action holding is unverified.
Reeves v. Safeway Stores, 121 Cal.App.4th 95 (2004)	YELLOW	25	2,991 (4 filings)	No negative direct history. First 20 treatments listed in catalog 02; entries 21–25 not read; which address fn. 9 unverified.

CASE	FLAG COLOR	NEGATIVE	CITING REFS	NOTES, AS RECORDED
Lin v. Kaiser, 88 Cal.App.5th 712 (2023)	YELLOW	1	140 (13 filings)	Distinguished by *Stewart v. County of Los Angeles*, 2023 WL 4768765 (Cal. Super. Mar. 28, 2023); content not read.
Hoglund v. Sierra Nevada Memorial-Miners Hospital, 102 Cal.App.5th 56 (2024)	YELLOW	2	—	*Wolpert* distinguished; *Charles v. County of Alameda*, 2026 WL 524232 (itself red-flagged) distinguished.
Cross v. Cooper, 197 Cal.App.4th 357 (2011)	YELLOW	16	—	Marginal to the employment-use question.
Colucci v. T-Mobile, 48 Cal.App.5th 442 (2020)	YELLOW	5	—	No negative direct history.
Grijalva v. ADP Screening, 151 F.4th 1055 (9th Cir. 2025)	YELLOW	count not captured	—	Willfulness; pins 1060–61.
Moran v. Screening Pros, 2020 WL 4724307 (C.D. Cal.)	YELLOW	3	—	Distinguished by *Ahn v. Bank of America* (C.D. Cal. July 25, 2023). Ninth Circuit *Moran*, 923 F.3d 1208, amended 943 F.3d 1175: 2 negative.
Kemp v. Superior Court, 86 Cal.App.5th 981 (2022)	COLOR NOT CAPTURED	1	—	Flag color not captured. Disposition vs. trial court not read.
Gray v. Nachurs Alpine, 2023 WL 3004433 (N.D. Ohio)	YELLOW	1	—	Distinguished by *Magallon*.
City of Los Angeles v. County of Kern, 59 Cal.4th 618 (2014)	RED	3	—	Abrogated by *Artis*; recognized by *Liulama v. State*, 450 P.3d 1287 (Haw. App. 2019); *Zoom Video Communications v. Underwriters at Lloyd's*, 2026 WL 1489066 (Cal. App. 6 Dist. May 27, 2026). Do not cite.
McCallum v. Batista, 2020 WL 1150273 (Cal. App. 5th Dist.)	RED	—	—	Unpublished. Not opened in Session C (limit hit). Catalog 01: irrelevant to use/remedies.
Bultemeyer v. CenturyLink, 2026 WL 2834418 (9th Cir. 2026)	NO FLAG	0	3	Does not limit *Syed*'s stand-alone holding.
Tailford, 26 F.4th 1092 (9th Cir. 2022)	COLOR NOT CAPTURED	—	—	Reaffirmed *Syed*. Flag not separately recorded.
Yeh v. Barrington Pacific, 117 Cal.App.5th 1303 (2026)	COLOR NOT CAPTURED	0	—	0 negative recorded; color not separately stated.
Walker v. Ronin Staffing, 2025 WL 2994548 (C.D. Cal.)	NO FLAG	0	—	Newest § 290.46 employment decision found.
Towner v. County of Ventura, 63 Cal.App.5th 761 (2021)	YELLOW	—	—	Unread (catalog 01).
Rosen v. City of Hawthorne, 2025 WL 618239	RED	—	—	Unread (catalog 01).

Session B recorded flag color only for *Artis*, *Kanter*, and *Gibson* in that session's leftovers note; other Session B cases often have negative-treatment counts only. Those counts are reported above where the catalogs gave them, with "color not captured" if no color was stated. Cases with 0 negative and a catalog statement of "no flag" are shown as "No flag."

8. “Do not cite” list

These items should not be cited, or should be cited only with the caution stated. Reasons are those the catalogs recorded.

AUTHORITIES AND REFERENCES NOT TO CITE, OR TO USE ONLY WITH RECORDED CAUTIONS

ITEM	REASON, AS RECORDED
Sharp v. Jules (including “Sharp v. Jules and Associates (Cal. Ct. App. 2d Dist. 2010)”)	No matching case found; not verified; do not cite. Catalog 01 had noted that briefs mentioned trebling to $1.5 million with disposition unverified; catalog 04’s later search found no matching case and instructs not to cite.
City of Los Angeles v. County of Kern, 59 Cal.4th 618 (2014)	Red flag; 3 negative treatments; abrogated by *Artis v. District of Columbia*, 583 U.S. 71 (2018). Do not cite.
Moore v. UPS, 2023 WL 4193906 (Cal. Ct. App. 1st Dist. June 27, 2023)	Unpublished; not citable in California courts (CRC 8.1115).
Razilov v. Nationwide, 242 F.Supp.2d 977 (D. Or. 2003)	6 negative treatments; abrogated by *Reynolds v. Hartford*, 435 F.3d 1081 (9th Cir. 2006). Do not cite.
Admore, 11th Cir., 2024 WL 371948	Unread. Session A-2 described it as an FMLA case and said “Do not cite without a full cite.” Session B opened the 2021 S.D. Fla. FCRA opinion (2021 WL 6926422) and listed 2024 WL 371948 only as a related reference, not read — check before citing. Do not cite the Eleventh Circuit decision without reading it. The 2021 district opinion may be cited as persuasive, with this appellate-history caveat.
Goode v. LexisNexis, 848 F.Supp.2d 532 (E.D. Pa. 2012)	11 negative treatments (disagreed with, declined to follow, and “called into doubt” by *Bultemeyer* (9th Cir. 2026)). Synopsis only. Use cautiously; do not treat as reliable Ninth Circuit law.
California unpublished opinions generally: *Franklin*, *Ballinger*, *Kaabinejadian*, *Harper*, *Whithorn*, *Duran*, *Hamilton*, *McCallum*, and *Birden* (Not Reported in Cal.Rptr.; verify citability)	Not citable in California courts (CRC 8.1115), except as that rule allows. They may be used as background on facts, evidence, and risks, which is how the catalogs treated them. *McCallum* is also red-flagged.
Ninth Circuit memorandum dispositions: *Wynn v. UPS*, 2024 WL 1191143; *Pierce v. East Bay MUD*, 2026 WL 2445810; *Keefer* (2024 mem., not opened); and other mem. dispositions	Citable if issued in or after 2007, but not precedent (9th Cir. R. 36-3). *Pierce* is the closest non-termination emotional-distress comparator and is expressly nonprecedential.
Pre-2021 standing decisions relied on for Article III	The guide’s red-flag note: superseded or abrogated by *TransUnion* on pre-2021 standing. *Case v. Hertz* was expressly flagged as pre-*Spokeo* / pre-*TransUnion* on standing. Use those cases for disclosure-format and willfulness points, not as standing holdings, unless a later court has reaffirmed them.
Snippet-only or caption-only leads, including the Session A snippet that a privacy harm in *Gray* “may be sufficient”	Not verified holdings. The *Gray* snippet was superseded by the full read, which is significantly adverse. Search-result captions in the catalogs are leads, not authorities.
This memorandum’s fact-brief baselines ($752 / $768) and illustrative shortfalls	The fact brief itself says they are not proven weekly earnings and are not to be cited as a payroll record, a contemporaneous transcript, a registry printout, or a filed complaint. The Volume 02 draft is unsigned and incomplete on jurisdiction and provenance.

9. STILL OPEN

These items were not completed, or were expressly left undetermined, in the catalogs. They are the work to pick up when Westlaw access is again available (the document limit hit on November 11, 2026, at about 7:24 p.m. Pacific Time, and had also hit earlier the same evening; it was expected to reset the next day). Exact `adv:` strings to run next are at the end of this section and, for strings already run, in the Appendix.

9.1 Question 10 — current statute text, and the § 290.46(j)(4)(A) $25,000-cap question

Not reached (document limit). Open: current Westlaw text, 2024–2026 amendments, and Notes of Decisions for 15 U.S.C.A. §§ 1681a(k), 1681b(b)(2)–(3), 1681g(a), 1681n, 1681o, 1681p, 1681t (NOD "standing" / "disclosure"); Cal. Civ. Code §§ 1786.2, 1786.16, 1786.20, 1786.22, 1786.40, 1786.50, 1786.52 — exact subdivisions cited in the guide: 1786.16(a)(2)(B), (b)(1); 1786.50(a)–(b); 1786.52 limitations; 28 U.S.C.A. § 1367(c)–(d); CCP §§ 338(a), 340(a); Lab. Code §§ 246 (90-day-rule paragraph), 98.6, 226, 1198.5 — text and paragraph numbers.

On § 290.46, the current (j)(1)–(4) text, including the verbatim (j)(4)(A) quotation, **was** read from the annotated statute (catalogs 01 and 04) and is in Section 3.1. What remains open is whether "not exceeding twenty-five thousand dollars ($25,000)" limits exemplary damages, or only the civil penalty, as verified on current Westlaw statute text and Notes of Decisions. The catalogs record no judicial construction of that clause.

9.2 CCP § 340(a) one-year limit for § 290.46

Undetermined. The guide asked whether a one-year limit for the civil-penalty part would produce a binding filing date of October 13, 2027. Search Q9-4 (`adv: "290.46" /p ("340(a)" "338(a)" limitation! penalty)`) returned 20 cases, 1 administrative decision, 14 secondary sources, 3 forms, 25 briefs, and 15 trial-court documents. Search Q9-5 (`adv: ("statute for a penalty" "340(a)") /p ("civil penalty" "exemplary") /p (individual aggrieved) & DA(aft 01/01/2015)`) returned 19 cases, mostly PAGA and wage cases, with no § 290.46 case visible. None was opened. The limit hit as *McCallum v. Batista* was being opened. *Donaleski* appears in the Q9-4 hit list and was not re-opened on the limitations question (it had been read earlier on "use," not on CCP § 340(a)).

9.3 Defense-brief searches (guide lines corresponding to the "Defense playbook" block)

Not reached. Run next, if Patron Access includes Briefs and Trial Court Documents:

```
adv: "1681b(b)(2)" & "motion to dismiss" & (TransUnion) & (hotel hospitality "background check")

adv: ICRAA & "1786.16" & ("motion to dismiss" "judgment on the pleadings") & DA(aft 06/24/2021)
```

Also run Matter 29 and Matter 26 opposing counsel (Seyfarth; Frederick Stanzick) through Briefs, as the guide directed. Secondary sources for orientation only, also not run: "investigative consumer reporting agencies act" & employer & disclosure — Rutter California Practice Guide: Employment Litigation (background-check chapter); Witkin Summary; FCRA treatise or ALR on standing after *TransUnion*.

9.4 *Mt. Clemens* / FEHA back-pay burden

Still open. Session 4 found no California or Ninth Circuit case resolving missing-employer-record uncertainty against the employer in a discrimination back-pay setting, and none squarely on part-time cut-hours back pay. Catalog 04: 398 cases on a back-pay / *Mt. Clemens* run; *Hollis v. SKC Investment* discusses *Mt. Clemens* wage-proof principles but is not a FEHA comparator. Follow-up searches in session 4 returned 0, 0, 1 (*Jimenez v. Allstate*, class overtime, not opened), and 1 (*Black*, not re-opened). Suggested next query:

```
"Mt. Clemens" & (FEHA OR "Title VII") & ("back pay" OR backpay)
```

No case that was read computed lost wages from schedules.

9.5 Hotel reduced-hours verdict comparator

The FEHA reduced-hours / hotel JVS query returned 817 hits and was not reviewed. “290.46” JVS returned 0. A Megan’s Law / registry employment JVS query returned 7 entries, all Out of Plan, none a comparable employment-damages case. Still missing: a hospitality reduced-hours verdict comparator.

9.6 Whether § 1367(d) tolls after an Article III standing dismissal

No squarely on-point case was found. *Artis* was a § 1367(c) decline, not an Article III dismissal, and contained no passage on standing dismissals specifically. *Rueb* (D. Colo. 2025) and *Marroquin* (L.A. Superior Court, Jan. 20, 2026; not precedent) treat jurisdictional dismissals as covered. Citing references on standing dismissals were a checklist item and were not completed with an on-point Ninth Circuit or Supreme Court case.

9.7 Unresolved cases and catalog leftovers

- *Walker v. Fred Meyer* — exact holding on whether (b)(3) requires an actual adverse action remains unverified.
- *Kanter* pins 857–58 and *Gibson* pin 945 — not captured or quoted (flags and negative counts only).
- *Staub* Title VII footnote — not opened; verify. France citing-reference KeyCite was not run in session 1 (flags later captured).
- *Parsonage* opinion body listed as not reached in Session B leftovers (history, review denial, and holding were recorded from other sessions).
- *Kemp* disposition versus the trial court — not read. Flag color for *Kemp* not captured.
- *Moody v. Ascenda* full text — not opened (relied on in *Admore* and *Nguyen-Wilhite*).
- *McCallum v. Batista* — not opened in Session C; remedy-language snippet unverified.
- *Towner v. County of Ventura*, 63 Cal.App.5th 761 (2021, yellow), and *Rosen v. City of Hawthorne*, 2025 WL 618239 (red) — unread.
- *Walker v. Ronin Staffing* — status versus Ronin and UCLA unverified.
- *Light*'s six negative treatments — inference that they target later headnotes (workers'-compensation exclusivity / IIED), not the adverse-action holding, is unverified.
- *Reeves* negative treatments 21–25 not read; which of the 25 address footnote 9 is unverified. *Lin*'s one negative treatment (*Stewart*) content not read. *DeJung* KeyCite was listed as not started.
- Q3 authorization search hit the 10,000-case cap and was unusable. No case on an authorization that rests on a disclosure never given (¶ 29 still unsupported). No case on reliance on a vendor or SHRM template. No estoppel-from-acknowledgment case. Session B: full texts of several cases; a second document for the Q7 search; flag colors for non-checklist cases.
- Cat's-paw unread leads (long lists in catalog 02), including Gould, Massey, Manner, Lara, Semple, Betson, Munoz, Sepulveda, Mwaniki, Karl, Perez, McClain, and the unread *Staub* and *Poland* citing-reference leads. No best-match trainer-evaluation-to-shift-cut case found. Task 2 "cat's paw terms search" was listed as not started in session 1 (a terms search was then run in session 2).
- Fair Chance Act (Gov. Code § 12952) and Labor Code § 432.7 comparators, suggested in catalog 01, were not run. A re-run of "290.46(j)" / "290.46(j)(4)" was suggested and only partly addressed in catalog 04 (exact-subsection query: 6 cases, 0 statutes, 18 secondary sources; still no award).
- Vicarious liability under a statute imposing liability on "the user," and whether a non-decisionmaking coworker or trainer is a "user" — no new law found; question not closed.
- *Vasquez v. Empress Ambulance* (Volume 07) was not independently KeyCited in these sessions.

Search strings to run next time (not completed, or recommended follow-ups)

```
# Q10 — pull current annotated statutes and Notes of Decisions (no adv: string in the guide;
# open the named sections directly):
#   15 U.S.C.A. §§ 1681a(k), 1681b(b)(2)–(3), 1681g(a), 1681n, 1681o, 1681p, 1681t
#   Cal. Civ. Code §§ 1786.2, 1786.16, 1786.20, 1786.22, 1786.40, 1786.50, 1786.52
#   Cal. Penal Code § 290.46 — whether "not exceeding $25,000" limits exemplary
#     damages or only the civil penalty
#   28 U.S.C.A. § 1367(c)–(d); CCP §§ 338(a), 340(a)
#   Lab. Code §§ 246 (90-day rule paragraph), 98.6, 226, 1198.5

# Q9-4 and Q9-5 — re-open, starting with McCallum and Donaleski on limitations:
adv: "290.46" /p ("340(a)" "338(a)" limitation! penalty)
adv: ("statute for a penalty" "340(a)") /p ("civil penalty" "exemplary") /p (individual aggrieved) &
DA(aft 01/01/2015)

# Defense playbook (Briefs / Trial Court Documents):
adv: "1681b(b)(2)" & "motion to dismiss" & (TransUnion) & (hotel hospitality "background check")
adv: ICRAA & "1786.16" & ("motion to dismiss" "judgment on the pleadings") & DA(aft 06/24/2021)

# Mt. Clemens / FEHA back pay:
"Mt. Clemens" & (FEHA OR "Title VII") & ("back pay" OR backpay)

# Suggested in catalog 01, not run:
"290.46(j)" / "290.46(j)(4)"
# Fair Chance Act (Gov. Code § 12952) and Lab. Code § 432.7 comparators

# JVS: review the 817-hit FEHA reduced-hours / hotel query, if in plan

# Checklist leftovers:
#   Walker v. Fred Meyer — reread on whether (b)(3) requires actual adverse action
#   Kanter pins 857–58; Gibson pin 945
#   Staub Title VII footnote; France citing-reference KeyCite
#   Artis citing references filtered to standing dismissals
#   Admore, 11th Cir., 2024 WL 371948 — read before citing
#   Moody v. Ascenda full text; Parsonage body; Kemp disposition
#   McCallum full text (limitations and remedy language)
#   Towner; Rosen
#   Light negative treatments — confirm they do not undermine the adverse-action holding
#   Reeves treatments 21–25 and fn. 9; Lin's Stewart treatment; DeJung KeyCite
```

10. Appendix — complete search log, with result counts

Every `adv:` string and every recorded result count from catalogs 01 through 08. Jurisdiction is as the session catalog stated it. “Cases” means the Cases database count unless the catalog broke out other document types. Strings from the research guide that were run are included with the counts that were obtained; guide strings that were not run are in Section 9, not double-counted here as if they had results.

Catalog 01 — § 290.46 (California state and federal + Ninth Circuit, Cases)

#	SEARCH	RESULTS, AS RECORDED
1	*Mendoza* KeyCite, citing references; within for “290.46”	692 citing references (161 cases). Within: 5 cases (*Cross*, *Rosen v. City of Hawthorne*, *Towner v. County of Ventura*, *Walker v. Ronin Staffing* 2025 WL 2994548, *People v. Oliver*)
2	"290.46" /p (employment OR "actual damages" OR "civil penalty")	20 cases

#	SEARCH	RESULTS, AS RECORDED
3	"290.46" /p (exemplary OR treble OR "emotional distress" OR "civil penalty")	6 cases (*Mendoza*, *Donaleski*, *McCallum*, *Cross*, *Towner*, *Adamski*)
4a	"290.46(l)" OR ("290.46" /s "subdivision (l)")	8 cases (*Mendoza*, *Mitchell v. Brown*, *Cross*, *Towner*, *Pastrana* 2007, *Adamski*, *McCallum*, *Rojas*)
4b	"290.4" /p employ!	17 cases; first 8 reviewed only
5	Statute Notes of Decisions	27 entries; relevant only *Mendoza* (hdg 2, 10) and *Cross v. Cooper* (hdg 8); none on remedies

Catalog 02 — cat’s paw

#	SEARCH	RESULTS, AS RECORDED
1	*Staub* KeyCite, filtered Cases / 9th Cir. / Cal. district / Cal. state; then within “trainer OR coworker OR evaluation OR attendance OR timecard OR schedul! OR hours”	73 filtered; within = 64 (includes about 6 Federal Circuit hits; filter to verify)
2	*Poland* KeyCite, filtered 9th Cir. + Cal. district (Cal. state 3 not added); then the same within filter	283 filtered; within = 220; page 1 captions only
3	*France* citing-reference KeyCite	Not run (session 1). Flags later: yellow, 6 negative, 591 citing
4	Session 2, Cases, “CA (St. & Fed.), 9th Cir.”: ("cat's paw" OR "biased subordinate") /p (trainer OR coworker OR evaluation OR attendance OR timecard)	50 (Fed 32, Cal.App. 18; 6 reported / 44 unreported; Empl. 42). Scope also pulls D. Or., D. Idaho, D. Nev., D. Guam, E.D. Wash.
5	Same query in CA state only; CA + 9th Cir. via URL	18 California state cases; 6 Ninth Circuit hits (*Gannon v. Potter*; *Green v. City of Phoenix*; *Perez v. UPS*, 2022 WL 3681297; *Cafasso*; *Karl v. City of Mountlake Terrace*, 678 F.3d 1062; *McClain v. County of Clark*, 585 F. App’x 410) — those six not opened. “50-result combined set not reproduced.”
6	*Reeves* and *DeJung* KeyCite (listed “NOT STARTED” in session 1)	Reeves captured in session 3: yellow, 25 negative (first 20 listed; 21–25 not read), 2,991 citing, no negative direct history. DeJung KeyCite not recorded as run. Lin: 1 negative (*Stewart*), content not read.

Catalog 03 — reduced hours and back-pay proof

#	SEARCH	RESULTS, AS RECORDED
1	Cases, CA-CS-ALL + CTA9_D (also pulled D. Or.): ("reduced hours" OR "reduction in shifts" OR "loss of shifts" OR "reduction in hours" OR "cut his hours" OR "cut her hours") /p ("adverse employment action" OR "lost wages")	44 cases. Six fully read; *Birden* partly; *Kahle* blocked on this pass and opened in session 4. Task B not run on this pass.
2	Session 4, Cases, CA state + federal, CA-CS-ALL: ("lost wages" OR "back pay" OR "backpay") /p ("part-time" OR "no guaranteed hours" OR "average hours" OR schedule OR schedules) /p (calculat! OR comput! OR estimat! OR approximat!)	61 results (46 federal, 15 CA). Top 40 mostly CAFA/removal and criminal restitution.
3	Follow-up *Mt. Clemens* / reduced-hours back-pay searches (exact strings not separately recorded beyond the suggested next query)	0, 0, 1 (*Jimenez v. Allstate*, class OT, not opened), 1 (*Black v. Board of Trustees*, 46 Cal.App.4th 493, not re-opened)

Catalog 04 — damages, JVS, § 290.46(j)(4)(A), Mt. Clemens

#	SEARCH	RESULTS, AS RECORDED
1	Emotional-distress awards that survived review (exact string not separately recorded in the catalog)	408 cases. Four comparators fully cataloged. No clean still-employed comparator; *Pierce* closest.
2	JVS, Megan's Law / registry employment	7 entries, all Out of Plan. Award-range filters ($0: 1; $500k–1M: 1; $1–2M: 1; $5M+: 4) could not be matched to individual cases.
3	JVS, "290.46"	0 results
4	JVS, FEHA reduced hours / hotel	817 hits; too broad; not reviewed
5	*Sharp v. Jules*	No matching case found
6	Exact-subsection query for current § 290.46 remedies (string not separately quoted beyond the subsection)	6 cases, 0 statutes, 18 secondary sources
7	Broad "290.46"	440 cases and 38 statutes
8	Back pay / *Mt. Clemens*	398 cases. *Hollis v. SKC Investment* discusses *Mt. Clemens* principles but is not a FEHA comparator. Question still open.

Catalogs 05–08 — FCRA guide sessions (All Federal, then CA + All Federal)

Q	SEARCH (AS RUN)	RESULTS, AS RECORDED
Q1-1	adv: "1681b(b)(2)" /p (standing "article III" "concrete injury" "concrete harm") /p TransUnion & DA(aft 06/24/2021)	3 cases (+4 trial-court documents); 1 under OR+9th (*Beltran*)
Q1-2	adv: "1681b(b)(2)" /p (privacy intru! seclusion) /p (standing concrete) & DA(aft 06/24/2021)	19 cases
Q1-3	adv: "stand-alone" "standalone" "consist! solely" /s disclosure /p (standing "article III") & DA(aft 06/24/2021)	32 cases
Q2-1	adv: "1681b(b)(2)" /p (never no fail! omit!) /s (provid! receiv! gave) /s disclosure	Session A: 151 cases (no date limit). Session A-2: 151 cases / 539 total (71 secondary, 37 briefs, 276 trial docs, 2 admin, 1 form, 1 arb)
Q2-2	adv: "1681b(b)(2)" /p (acknowledg! certif!) /s receiv! /s disclosure	Session A: 6 cases (*Wynn v. UPS*, *Case v. Hertz*, *Fosbrink*, *Bebault*, *Frazier*, *Syed*). Session A-2: 6 cases / 17 total, same six.
Q3	adv: "1681b(b)(2)(A)(ii)" authoriz! /p (release waiver "without reservation" acknowledg!)	10,000 (cap, unusable). Top hits: *Limon*, *Thomas v. FTS*, *Singleton v. Domino's*, *Legrand*, *Newsome*, *Luna*, *Speer*, *Bercut*
Q5	adv: "1681b(b)(2)" /p (willful! reckless!) /p Safeco /p (template form vendor "objectively unreasonable")	14 cases: *Jones v. Halstead*, *Milbourne*, *Graham*, *Snell v. G4S*, *Lewis v. Southwest*, *Syed*, *Lengel*, *Johnson v. New Bern*
Q4-S1	adv: "1681b(b)(3)" /p ("adverse action" "1681a(k)") /p (hours shift! schedul! reduc! demot!)	7 cases / 27 total
Q4-S2	adv: "1681a(k)(1)(B)(ii)" /p (current existing) /3 employee	53 cases / 169 total
Q4-S3	adv: "1681b(b)(3)" /p (standing concrete) /p ("opportunity to" dispute respond explain) & DA(aft 06/24/2021)	15 cases / 31 total
Q6-S4	adv: ("1786.16" ICRAA "investigative consumer reporting agencies act") /p (standing "article III") & DA(aft 06/24/2021)	14 cases / 180 total
Q6-S5	adv: ICRAA /p (preempt! "1681t")	11 cases / 79 total

Q	SEARCH (AS RUN)	RESULTS, AS RECORDED
Q6-S6	adv: "1786.50" /p ("ten thousand" "$10,000") /p (per violation each greater)	35 cases / 267 total
Q6 first	adv: "1786.16" /p (disclosure "investigative consumer report") /p (employ! employer)	Count not separately recorded in the session catalogs (guide string; standing, preemption, and $10,000 searches were the ones counted in Session B)
Q7-S7	adv: (FCRA "1681b" ICRAA) /p (acknowledg! certif!) /s (receiv! "read and understand") /p (estop! waiv! bar!)	17 cases / 92 total; mostly noise. Second document not reached.
Q8-1	adv: "1367(d)" /p (toll!) /p (standing "lack of jurisdiction" "subject matter") /p (federal claim)	213 cases; 1 trial-court order; 70 secondary; 1 form; 50 briefs; 39 trial docs; 374 total
Q8-2	adv: "1367(c)" /p ("290.46" "novel" "complex issue of state law") /p (FCRA "1681")	12 cases; 30 trial docs; 2 secondary. No 290.46 hits visible.
Q9-3	adv: "290.46" /p (employ! "person at risk" user)	25 cases; 1 trial order; 1 statute; 1 admin; 29 secondary; 2 forms; 29 briefs; 40 trial docs. No post-September 2026 employment decision; newest is *Walker* (Oct. 10, 2025).
Q9-4	adv: "290.46" /p ("340(a)" "338(a)" limitation! penalty)	20 cases; 1 admin; 14 secondary; 3 forms; 25 briefs; 15 trial docs. None opened (limit hit on *McCallum*).
Q9-5	adv: ("statute for a penalty" "340(a)") /p ("civil penalty" "exemplary") /p (individual aggrieved) & DA(aft 01/01/2015)	19 cases; 3 trial orders; 15 secondary; 16 briefs; 57 trial docs. Mostly PAGA/wage; none opened; no 290.46 case.
Q10	Current statute text and Notes of Decisions (named sections; no adv: string)	Not reached
Defense	The two Briefs strings in Section 9.3	Not reached

KeyCite filters the guide asked for, and whether they were run

- *Syed*, filter Cases / 9th Cir. / after June 2021 / standing headnote — Session A recorded that the Ninth Circuit has not narrowed the standing holding and quoted *Tailford*; page 2 of citing references and several 2024–2026 citing cases were not opened in Session A; *Bultemeyer* and *Wynn* were opened later.
- *Parsonage* history — run; review denied April 29, 2026; no depublication.
- *Artis* citing references on standing dismissals — started; no squarely on-point case found; document limit in Session A hit on opening *Artis* itself; Session C opened *Artis* and related hits.
- *Donaleski* citing references since 2009 — 4 citing references recorded.
- *Mendoza* later treatment — 0 negative; 692 citing (161 cases); within “290.46”: 5 cases.

End of memorandum. Prepared November 11, 2026, from on-screen Westlaw Patron Access (Oregon State Law Library) session catalogs. Nothing was downloaded from Westlaw. Attorney work product / research notes — not legal advice; verify before citing.